SOLICITATION, OFFER AND AWARD

1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)	RATING	PAGE OF PAGE	1 / 81

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
	N4571A-26-R-0004	☐ SEALED BID (IFB) ☒ NEGOTIATED (RFP)		**PR4877**

7. ISSUED BY CODE

COMMANDER, NAVY INSTALLATIONS COMMAND
NAF ACQUISITIONS BRANCH N945
5720 INTEGRITY DRIVE LASSEN BUILDING 457
MILLINGTON, TN 38055-6500
POC: JASMYN PAYNE 901-874-6931
JASMYN.M.PAYNE.NAF@US.NAVY.MIL

8. ADDRESS OFFER TO *(If other than item 7)*

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION

9. Sealed offers in original and 1 copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if hand carried, in the depository located in Electronically until 0800 *(Hour)* local time 17 February 2026 *(Date)*

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. L-6. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS) AREA CODE	NUMBER	EXT.	C. E-MAIL ADDRESS
	Jasmyn Payne	901	874 - 6931		Jasmyn.m.payne.naf@us.navy.mil

11. TABLE OF CONTENTS

OFFER *(Must be fully completed by offeror)*

12. In compliance with the above, the undersigned agrees, if this offer is accepted within ______ calendar days *(60 calendar days unless a different period is inserted by the offeror)* from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT *(See Section I, Clause NARS.I053)*	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)

14. ACKNOWLEDGMENT OF AMENDMENTS *(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):*	AMENDMENT NO.	DATE	AMENDMENT NO.	DATE

15A. NAME AND ADDRESS OF OFFEROR — CODE — FACILITY

16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*

15B. TELEPHONE NUMBER — AREA CODE — NUMBER — EXT.

☐ 15C. **CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.**

17. SIGNATURE

18. OFFER DATE

AWARD *(To be completed by Government)*

19. ACCEPTED AS TO ITEMS NUMBERED

20. AMOUNT

21. ACCOUNTING AND APPROPRIATION
NON APPROPRIATED FUNDS

22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION:
☐ 10 U.S.C. 2304(c) ( ) ☐ 41 U.S.C. 253(c) ( )

23. **SUBMIT INVOICES TO ADDRESS SHOWN IN** *(4 copies unless otherwise specified)* ITEM: See Section G

24. ADMINISTERED BY *(If other than Item 7)* CODE

25. PAYMENT WILL BE MADE BY CODE
See Section G

26. NAME OF CONTRACTING OFFICER *(Type or print)*

27. UNITED STATES OF AMERICA
(Signature of Contracting Officer)

28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

PART I, SECTION B: SUPPLIES OR SERVICES AND PRICES/COSTS

B-1. GENERAL. This is a procurement of the Commander, Navy Installations Command (CNIC) Morale, Welfare, and Recreation (MWR) Nonappropriated Funds Instrumentality (NAFI), hereinafter referred to as NAFI.

B-2.TYPE OF CONTRACT. It is anticipated that this solicitation is to be awarded as a Firm-Fixed-Price type contract with a Base Year of One (1) year with Four (4) One-year option periods.

B-3. SERVICES PRICE/COST SCHEDULE. Offeror is to fill in the proposed pricing table below. The Government anticipates a labor mix from the below list of CLINS that will be utilized against the contract.

B-4. AWARD. Upon award of contract, Sections K, L, and M of the solicitation will be removed, and the Contractor's technical proposal, including any revisions will be incorporated by reference, subject to Clause NARS.I015 (Order of Precedence).

B-5.

BASE YEAR

CLIN	Category	QTY	UNIT	Proposed Unit Rate	Proposed Total Price
0001	**Program Management**				
	Program Manager	1880	EA	$ -	$ -
	Project Manager	5640	EA	$ -	$ -
		7520			$ -
0002	**Application , Development and Maintenance**				
	Systems Engineer	9400	EA	$ -	$ -
	Software Systrems Engineer	11280	EA	$ -	$ -
	Engineer	1180	EA	$ -	$ -
	Information Assurance System Security	3760	EA	$ -	$ -
	Analyst	5640	EA	$ -	$ -
		31260			$ -
0003	**Help Desk Support**				
	Senior Technician	1880	EA	$ -	$ -
	Support Technician	11280	EA	$ -	$ -
		13160			$ -
0004	**Spouse Transition**				
		1	Lot		$ 500,000.00
0005	**Other Direct Costs (See PWS)**				
		1	Lot		$ 30,000.00
				Base Year Total Estimated Cost	

OPTION YEAR I

CLIN	Category	QTY	UNIT	Proposed Unit Rate	Proposed Total Price
1001	**Program Management**				
	Program Manager	1880	EA	$ -	$ -
	Project Manager	5640	EA	$ -	$ -
		7520			$ -
1002	**Application , Development and Maintenance**				
	Systems Engineer	9400	EA	$ -	$ -
	Software Systrems Engineer	11280	EA	$ -	$ -
	Engineer	1180	EA	$ -	$ -
	Information Assurance System Security	3760	EA	$ -	$ -
	Analyst	5640	EA	$ -	$ -
		31260			$ -
1003	**Help Desk Support**				
	Senior Technician	1880	EA	$ -	$ -
	Support Technician	11280	EA	$ -	$ -
		13160			$ -
1004	**Spouse Transition**				
		1	Lot		$ 500,000.00
1005	**Other Direct Costs (See PWS)**				
		1	Lot		$ 30,000.00
				Option Year I Total Estimated Cost	

OPTION YEAR II

CLIN	Category	QTY	UNIT	Proposed Unit Rate	Proposed Total Price
2001	**Program Management**				
	Program Manager	1880	EA	$ -	$ -
	Project Manager	5640	EA	$ -	$ -
		7520			$ -
2002	**Application , Development and Maintenance**				
	Systems Engineer	9400	EA	$ -	$ -
	Software Systrems Engineer	11280	EA	$ -	$ -
	Engineer	1180	EA	$ -	$ -
	Information Assurance System Security	3760	EA	$ -	$ -
	Analyst	5640	EA	$ -	$ -
		31260			$ -
2003	**Help Desk Support**				
	Senior Technician	1880	EA	$ -	$ -
	Support Technician	11280	EA	$ -	$ -
		13160			$ -
2004	**Spouse Transition**				
		1	Lot		$ 500,000.00
2005	**Other Direct Costs (See PWS)**				
		1	Lot		$ 30,000.00
				Option Year II Total Estimated Cost	

OPTION YEAR III

CLIN	Category	QTY	UNIT	Proposed Unit Rate	Proposed Total Price
3001	**Program Management**				
	Program Manager	1880	EA	$ -	$ -
	Project Manager	5640	EA	$ -	$ -
		7520			$ -
3002	**Application , Development and Maintenance**				
	Systems Engineer	9400	EA	$ -	$ -
	Software Systrems Engineer	11280	EA	$ -	$ -
	Engineer	1180	EA	$ -	$ -
	Information Assurance System Security	3760	EA	$ -	$ -
	Analyst	5640	EA	$ -	$ -
		31260			$ -
3003	**Help Desk Support**				
	Senior Technician	1880	EA	$ -	$ -
	Support Technician	11280	EA	$ -	$ -
		13160			$ -
3004	**Spouse Transition**				
		1	Lot		$ 500,000.00
3005	**Other Direct Costs (See PWS)**				
		1	Lot		$ 30,000.00
				Option Year III Total Estimated Cost	

OPTION YEAR IV

CLIN	Category	QTY	UNIT	Proposed Unit Rate	Proposed Total Price
4001	**Program Management**				
	Program Manager	1880	EA	$ -	$ -
	Project Manager	5640	EA	$ -	$ -
		7520			$ -
4002	**Application , Development and Maintenance**				
	Systems Engineer	9400	EA	$ -	$ -
	Software Systrems Engineer	11280	EA	$ -	$ -
	Engineer	1180	EA	$ -	$ -
	Information Assurance System Security	3760	EA	$ -	$ -
	Analyst	5640	EA	$ -	$ -
		31260			$ -
4003	**Help Desk Support**				
	Senior Technician	1880	EA	$ -	$ -
	Support Technician	11280	EA	$ -	$ -
		13160			$ -
4004	**Spouse Transition**				
		1	Lot		$ 500,000.00
4005	**Other Direct Costs (See PWS)**				
		1	Lot		$ 30,000.00
				Option Year IV Total Estimated Cost	

Base Year & All Option Years Total Estimated Price $ ___________

(END OF SECTION B)

PART I, SECTION C: DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

C-1.0 INTRODUCTION

The Department of Defense (DoD) requires a Contractor to deliver innovative Information Technology (IT) and Cybersecurity services that enable, secure, and advance multiple, interrelated service member and family support programs. The contractor's solutions must be continuously monitored, analyzed, and improved to ensure effectiveness, enhance content delivery, and incorporate IT and Cybersecurity innovations. Industry best practices, adaptive strategies, and modern technologies shall be applied to maximize mission impact. The contractor is required to support key functional areas to include:

- DoD Spouse Education and Career Opportunities (SECO) Program
    - MySECO website, to include:
        - Military Spouse Employment Partnership (MSEP) Jobs Portal
        - MSEP Partner Portal
        - My Career Advancement Account (MyCAA)
        - SECO Administration Portal (SAP)
        - Military Spouse Career Accelerator Pilot/Program (MSCAP)
- DoD Voluntary Education Management Information System (VEMIS)
- Postsecondary Education Complaint System (PECS)
- DoD Community Capacity Inventory (CCI)

The MySECO website serves as the primary interface for military spouses into the SECO program providing information, tools and resources for career exploration, education and training, career readiness, and connections to employers. This dynamic environment underpins quality of life support systems for military members and their spouses. Therefore, the intent is to have a flexible and adaptive contract that allows the Government to quickly address evolving social dynamics, educational requirements and/or military missions, while consistently addressing the emerging needs of the military spouse community. A primary aspect of this contract is to ensure participants have access to industry best practices across all aspects of career development and educational support. The DoD seeks to leverage emerging technologies and artificial intelligence (AI) to streamline processes, personalize user experiences, optimize resource allocation, and drive decision-making through data-informed insights.

C-2.0 SCOPE OF WORK

The Contractor shall provide adaptive, forward-leaning support for the design, development, cybersecurity, operations, content, and technical assistance of multiple websites and applications that serve military spouses, employers, and other stakeholders. The focus shall be on delivering innovative, user-driven solutions that anticipate evolving needs, integrate emerging technologies, and sustain operational excellence. This includes, but is not limited to:

- Designing and maintaining intuitive, user-centered interfaces leveraging Human Centered Design (HCD) principles.
- Ensuring seamless functionality and accessibility across devices, platforms, and operating environments.
- Exploring and responsibly integrating large language models, generative AI, and other advanced technologies to improve user engagement, streamline workflows, and personalize experiences.

- Maintaining full compliance with Section 508 and Web Content Accessibility Guidelines (WCAG) 2.X, including proactive alignment with future changes/updates to accessibility standards.
- Delivering secure operations and continuous maintenance of websites and applications in alignment with DoD and MC&FP cybersecurity and privacy mandates.
- Providing timely, accurate content updates that reflect the latest policies, programs, and resources available to military spouse. Implementing data-driven monitoring, analytics, and reporting to support decision-making, measure impact, and identify opportunities for improvement.
- Conduct continuous optimization, usability testing, and iterative enhancements to ensure evolving user's needs are met.
- Delivering responsive technical assistance to diverse end users, including military spouses, employers, government personnel, and vendors, etc. through:
    - Troubleshooting and resolution support
    - Guided tutorials and self-service resources
    - Regular training sessions and knowledge-sharing opportunities for stakeholders

C-3.0 BACKGROUND

Currently, there are approximately 898,000 military spouses across the active duty, Reserve, and National Guard communities. Roughly 89% are women, with an average age of 34. Military spouses face unique challenges in securing meaningful employment due to the demands of military life, including frequent relocations every two to three years on average, often across state lines or overseas. The majority of military installations are located in remote areas, limiting access to traditional employment opportunities.

Despite these challenges, military spouses are essential contributors to the economic security and resilience of the military family. Eighty-five percent (85%) of spouses report that they want or need to work in order to achieve career goals and maintain quality of life. However, frequent moves every 24 to 36 months create persistent barriers to employment continuity and advancement. The unemployment rate for military spouses has remained above 20% for more than a decade which is more than four times the national average.

Employers that hire military spouses recognize them as valuable asset to the American workforce. Spouses are highly educated: Eighty-eight percent (88%) have completed some college, thirty-one percent (31%) hold a bachelor's degree, and eighteen percent (18%) possess professional or graduate degrees, making them more highly educated than their civilian counterparts. Despite these strong qualifications, military spouses continue to experience disproportionate rates of unemployment and underemployment compared to their civilian peers. To address these challenges and empower military spouses to achieve their educational and employment goals, the Department of Defense (DoD) established the Spouse Education and Career Opportunities (SECO) Program. The SECO Program provides a dynamic environment encompassing quality of life support systems for military members and their dependents. The SECO Program serves eligible military spouses in both the Continental United States (CONUS) and OCONUS. The program offers military spouses a primary resource for education, postsecondary education, career exploration, and employment support, including access to coaching, training, licenses, and credentials needed for career employment.

These elements are delivered through a unified web platform to the user, including military spouses, employers, schools, and other stakeholders, in a comprehensive manner designed to provide a seamless user experience regardless of the specific program applications. The purpose and goal of each program application includes, but is not limited to:

- SECO Administration Portal (SAP): A Customer Relations Management (CRM) tool for multiple aspects of the SECO program to include tracking of all interactions between the SECO program and spouses, employers, education/training providers, and other stakeholders. SAP enables information sharing across portals and with Government and contract support teams through a consolidated database, ensuring an integrated experience for military spouses.
    - SECO Career Center: Accessible by phone through Military OneSource or via online chat through the MySECO website, the Career Center provides employment and education support six (6) days a week (Monday-Saturday). The Career Center staff are primary users of SAP.
- MySECO website: A one-stop online career and education resource center that delivers information, tools and interactive features to assist military spouses in achieving their educational and career goals.
    - Resources include: Dynamic spouse profiles searchable by employers; A comprehensive military spouse specific resume builder; integrated career assessments; military spouse scholarship finders; a jobs board populated by MSEP partners (both automatically and manually); job search by verified military spouses; candidate/job matching and job/candidate matching capabilities; Access to the MSEP Partner Portal, military spouse scholarship finders, the MyCAA portal, and hosts other content related to military spouse career support.
- Military Spouse Employment Partnership (MSEP): Connects military spouses to hundreds of employer partners who have committed to recruit, hire, promote and retain them in portable careers. MSEP partners include corporations, small businesses, nonprofits, and federal/local government agencies. The partner web application supports new partner applications, partner dashboards, candidate/job matching, engagement metrics, and staff support functions.
    - MySTeP: Provides military spouses with micro-learning content and resources to support transition from military to civilian life. MySTeP content is hosted on MySECO.
    - My Career Advancement Account (MyCAA): A workforce development program offering eligible spouses up to $4,000 in financial assistance for education, training and licensure needed to enter the workforce. The web application allows military spouse to determine eligibility, search for eligible schools and programs, and apply for and receive financial assistance for eligible coursework.
- Military Spouse Career Accelerator Pilot (MSCAP): A competitive, 12-week paid fellowship for military spouses with industry designed to transition spouses from fellows to employed at the conclusion of their fellowship. The web portal manages program processes, enables employer searches for candidates, and provides spouses access to fellowship opportunities.
- VEMIS, PECS, and CCI: Related programs that extend beyond SECO but support the broader Military Family Readiness System.
- Voluntary Education Management Information System (VEMIS): see section 7.2
- Postsecondary Education Complaint System (PECS): Allows military spouses to submit complaints related to accreditation, program quality, recruitment, and/or financial aid issues at institutions participating in the MyCAA program and request resolution.
- Community Capacity Inventory (CCI): An evidence-informed online inventory that provides insight into service members and spouses readiness, helping military leadership and military family readiness service providers make informed resource and service delivery decisions

C-4.0 DEFINITIONS AND ACRONYMS

- **Academic Institutions Portal:** Utilized to engage with educational/training providers in support of the MyCAA. This includes the government vetting, reviewing, and approving institutions for participation in MyCAA, and those institutions subsequently submitting invoices for payment.
- **CNIC**: Commander, Navy Installations Command (CNIC), Millington, TN. CNIC is responsible for the administration of this contract.
- **CCI:** Evidence-informed online inventory that provides insight into the readiness of service members and their spouses. CCI assists military leadership and military family readiness service providers at the Service and program level make informed decisions about resources and service delivery.
- **Contractor**: The individual, partnership, corporation, or entity that is awarded the contract to provide services specified herein.
- **Contracting Officer**: The individual with authority to execute and/or administer a contract on behalf of the non-appropriated fund activity or its successor.
- **Contracting Officer's Representative (COR)**: The individual that acts as the liaison between the Contractor and the contracting officer. The COR is responsible for clarifying contract requirements as necessary with respect to the specifications and/or performance work statement and monitoring the progress and quality of contract performance.
- **DoD**: The Department of Defense.
- **DS Logon**: A secure, self-service logon ID that allows service members, veterans or family members affiliated with the Department of Defense or Veterans Affairs to access several DoD or VA websites using a single username and password. All DS Logon accounts are verified through the Defense Enrollment Eligibility Reporting System, or DEERS.
- **Military OneSource**: a Department of Defense program providing free, comprehensive support to service members and their families, including veterans (up to 365 days post-separation). As a 24/7/365 information and referral service accessible worldwide, it acts as a personal and family readiness tool, extending the existing family support system, especially for those geographically separated from installation services or unable to seek assistance during traditional hours. Available via toll-free telephone (CONUS: 800-342-9647; Overseas: see militaryonesource.mil for instructions) and online (MilitaryOneSource.mil), it offers information, resources, and individualized consultations, coaching, and counseling to help address any aspect of military life and promote well-being by helping individuals reach goals and overcome challenges. Supported by legislative requirements, Military OneSource fills a critical gap in DoD support services.
- **MSCAP:** The Military Spouse Career Accelerator Pilot
- **MSEP**: The Military Spouse Employment Partnership
- **MySECO**: A website that serves as a one-stop online career and education platform.
- **MyCAA**: Provides up to $4,000 of financial assistance to eligible military spouses to help pay for licenses, certifications, national testing, certain continuing education credits or associate degrees necessary for employment.
- **MySTeP**: The Military Spouse Transition Program provides resources to help prepare spouses for transitioning from the military.
- **PECS**: Used by active-duty members and their spouses to file complaints against educational and training providers.
- **SAP**: The CRM that allows authorized users to monitor daily operations related to multiple aspects of the SECO program. This includes, but is not limited to, financial invoicing from education and training providers, education and training provider engagement, employer engagement, spouse engagements and data management.
- **SECO**: Provides the umbrella program for multiple initiatives focused on education and career guidance to military spouses worldwide, offering comprehensive resources and tools related to

career exploration, education, training and licensing, employment readiness and career connections.
- **TPOC:** Technical Point of Contact serves as the Subject Matter Expert on programmatic efforts related to the contract.
- **TAR**: Tasking, Assignments and Reporting application.
- **VEMIS**: Allows authorized (Army, Navy, Air Force, Marine Corps and Coast Guard) users to submit quarterly and annual education data.

C-5.0 PERFORMANCE REQUIREMENTS

The Contractor shall provide the following services:

C-5.1.1 Provide all personnel, equipment, tools, materials, vehicles, supervision, (except as specified in government-furnished property and services), and other items and services necessary to perform the requirements of this PWS.

C-5.1.1.1 At least 30 percent of personnel assigned to this contract must be current or former military spouses with lived experience navigating mobile military life and career transitions.

1. The Contractor shall provide Government approved links and online referrals to tools and resources in support of MySECO participant needs, organized in the following categories or as directed by the Government. Including, but not limited to:
    - Find a Job: Job banks; career and job fair schedules; networking; military friendly employers; MSEP jobs board; federal job resources; resume and job application assistance; salary and benefit information; labor market (career and employment) forecasts at a local, regional, and national levels.)
    - Get Career Advice: Career coaching services; assessments of career interests, skills, knowledge, values, and ability; interview and job search skills; portfolios and transcripts; workplace flexibility options (alternative worksites, flex-hours, telecommuting, job sharing); strategies for balancing work, life, and parenting responsibilities.
    - Explore Education: Education and training; postsecondary schools with programs of study leading to degrees, licenses, certifications and credentials needed for careers and employment; professional development opportunities; testing services; public sector high school completion options; English as a Second Language programs; study skills and test preparation resources; sources of financial assistance.

C-5.1.2 The Contractor shall provide electronic access to Government approved assessment tools and resources that address participant needs. These tools and resources must be demonstrated effective in supporting mobile military spouses with:

- Career interests and occupational awareness.
- Career decision-making and goal setting.
- Identification of skills, knowledge, abilities, and core values.
- Personality type identification linked to career choices and job satisfaction.
- Generational work preferences and employment forecasts.
- Preferred adult learning modalities (e.g., classroom, distance learning, self-directed methods).
- Academic readiness in English, reading, math, and science.
- Test-taking and study skills.
- Life skills, job training, and documenting work experience for portfolio development.
- Placement tests for advanced entry into education and training programs.
- Interview skills assessments.
- Translating volunteer work experience and training for résumé development.
- Translating military work experience and training for résumé development.

C-5.1.3 Continually review requirements to sustain and enhance the MSEP Jobs Portal. Reviews shall include evaluating current DoD capabilities and platforms to determine the level of effort required to leverage those platforms to expand functionality, improve user experience, and align business processes. This analysis shall inform configuration or reconfiguration of system architecture, application design and development, database improvements, and hardware design and documentation.

C-5.2 PROJECT MANAGEMENT

C-5.2.1 Provide academic, technical, and policy consultation to the PM, COR and/or their designee.

C-5.2.2 Meet with the PM, in coordination with the COR, to establish and adjust priorities for changes, as required.

C- 5.2.3 The Contractor shall collaborate with other contractors supporting the SECO Program and MC&FP. Collaboration shall include, but not be limited to: training on the utilization of the MSEP Career Portal and providing timely, accurate information for Government communications to various stakeholders.

C-5.2.4 The Contractor shall use the MC&FP Task and Tasking, Assignments, and Reporting (TAR) application to obtain government assignments, report progress and obtain government approval on completed assignments. The contractor shall record the time spent on assignments in the TAR. All work shall be documented with meaningful narrative descriptions of tasks preformed and hours expended within the TAR application. All Government support requests entered into the TAR shall be acknowledged by the contractor within three (3) business days. Each acknowledgement shall include a projected completion date, or a date the projected completion date will be provided.

C-5.2.5 The Contractor shall prepare and submit a Monthly Status Report (Deliverable 01) no later than the 15th of each month. The report shall provide a summary of activities conducted during the reporting period, including accomplishments, tasks completed, issues encountered, risks identified, and planned activities for the next reporting period at a minimum.

C-5.2.6 The Contractor shall document communication with MSEP partners in the Account Management System (AMS).

C-5.3 TRAINING, TRAINING AIDS, AND USER MANUAL

C-5.3.1 The Contractor shall conduct training using a train the trainer format for Spouse Education and Career Opportunities (SECO) staff (including but not limited to program managers, career coaches, advisors, MSEP specialists) on software applications as needed, not to exceed eight sessions per year.

C-5.3.2 The Contractor shall deliver training classes virtually, at the Government facility, or at the Contractor’s offices, as directed by the COR.

C-5.3.3 The Contractor shall develop and update training aids and a user manual to support ease of use of all software applications.

C-5.3.4 The Contractor shall develop, update, and provide training for schools using the Academic Institutions (AI) Portal, as needed.

C-6.0 APPLICATION DEVLEOPMENT AND SUSTAINMENT

The contractor shall design, develop, and enhance SECO applications to support program requirements. Applications include, but are not limited to: MySECO website, MyCAA, MSEP Jobs Board, MSEP Partner Portal, SECO Administration Portal (SAP), PECS, CCI, and VEMIS. (and interfaces with the Academic Institutions Portal (AIPORTAL). The Contractor shall provide an Application Enhancement & Modernization Report (Deliverable 02) twice per year that documents enhancements implemented, modernization activities completed, integration of emerging technologies, and recommendations for future improvements to SECO applications.

- Provide application development services that emphasize secure, scalable, and user-friendly design, leveraging modern industry best practices.
- Develop and maintain interactive tools and resources (e.g., resume builders, scorecards, content hosting, feedback mechanisms) to support military spouse employment, training, and education needs.

- Implement enhancements in response to evolving Government direction and user requirements, including modernization of legacy features and integration of emerging technologies where appropriate.
- The Contractor shall comply with MC&FP IT Configuration Management and Change Control Plan, Policies, and Procedures (CMP3), including all associated configuration management, change control, and approval processes.
- Ensure all applications meet DoD accessibility standards, including Section 508 and WCAG, with accessibility testing incorporated into development cycles.
- The Contractor shall provide a Monthly Section 508 Compliance Report (Deliverable 03) no later than the 15th of each month, documenting accessibility testing conducted, issues identified, corrective actions taken, and overall compliance status with Section 508 and WCAG standards.
- Design for cross-platform and cross-device compatibility, ensuring consistent performance on desktops, tablets, and mobile devices.
- Provide documentation and status reporting to keep the Government informed of development activities, upcoming enhancements, and any identified risks.

C-6.1 TECHNICAL SUPPORT
The contractor shall provide responsive technical support for the SECO applications and stakeholders, ensuring timely resolution of issues and consistent user assistance.

- Provide support resources such as user guides, webinars, and direct assistance (virtual or one-on-one) to address application issues, new functionality, and system changes, as requested by the Government.
- Review and provide recommendations to the Government for approval or disapproval of all MyCAA school applications within 30 business days of receipt.
- Provide schools with clear policy and process guidance related to the MyCAA program, ensuring consistent application of requirements.
- Develop and distribute onboarding reference materials and training for schools newly participating in the MyCAA program.
- Investigate and document issues or complaints related to MyCAA schools, providing findings and recommendations to the Government.
- Support the virtual event platform for hiring fairs, ensuring stable operations and a positive user experience.
- Provide ongoing management, maintenance, and user support for SECO portals, which may include occasional travel for on-site assistance as directed by the Government.

The contractor shall ensure the SECO applications and portals remain fully functional, secure, and continuously available.

C-6.2 OPERATIONS AND MAINTENANCE Provide operations and maintenance services 24/7/365 to minimize downtime and ensure uninterrupted access to SECO systems.

- Ensure the MSEP Jobs Portal remains continuously available to spouses and MSEP partners.
- Conduct regular reviews of SECO application requirements and capabilities, recommending enhancements to improve functionality, user experience, and alignment with business processes.
- Maintain and upgrade the Community Capacity Inventory (CCI) application to ensure continued effectiveness in assisting spouses with school and relocation evaluations.
- Perform adaptive maintenance to update or enhance existing functionality in response to changing Government needs or evolving technical requirements, treating such requests as a high priority.
- Maintain access to the Air Force Academic Institutions Portal (AIPORTAL) for database and configuration management activities.

C-6.3 DATABASES AND DATA MANAGEMENT
The contractor shall support SECO program objectives by developing, maintaining, and enhancing databases that provide information critical to military spouses. All databases shall remain Government property.

- Maintain databases of education and training institutions, including data on financial costs, credentialing/licensing requirements, salary projections, and career development details.
- Maintain a scholarship database for military spouses with fields such as school information, point of contact details, scholarship type, eligibility, application timelines, and funding amounts.
- Maintain a database of federal, state, and private funding sources for education and training programs, capturing relevant information such as accreditation, tuition/fees, assistance type and amount, eligibility criteria, and limitations.
- Ensure databases are accurate, updated regularly, and designed for efficient search and reporting functionality to support Government decision-making.

C-6.4 HOSTING AND PORTAL OPERATIONS
The contractor shall develop, manage, and sustain the hosting and infrastructure environment supporting SECO applications, ensuring secure, reliable, and consistent operations.

- Develop, manage, and maintain the networks and systems required to interface with academic institutions through the AI Portal and all applications identified in this PWS.
- Within 60 calendar days of PS and annual thereafter, document and implement a “Zero Defects Usability and Quality Framework” SOP (Deliverable 05) to reduce or eliminate software and application defects prior to production deployment pre-deployment, including rigorous testing, peer reviews, and continuous quality checks.
- Maintain sufficient bandwidth and internet availability to support SECO applications. Provide the Government with 48-hour notice prior to planned downtime and ensure that downtime messages are automatically displayed to users.
- Provide physical support for web production environments and application hardware, as required.
- Collaborate with the Government and other contractors (e.g., MySECO, MSEP, MyCAA, and Military OneSource teams) to ensure seamless and unified service delivery to SECO users and audiences.
- Ensure the MySECO web presence links to the MilitaryOneSource.mil public website and maintains consistency with Military OneSource design standards and the MC&FP Style Guide located at https://styleguide.militaryonesource.mil/.
- Provide a single-entry point into MySECO services with secure login capability. Authentication shall be provided by the Government through a SOAP-based web service API.
- Ensure technical infrastructure and capabilities support 24/7 operations for users both in CONUS and OCONUS.
- Collaborate with the Government to produce a Monthly MySECO Web Portal Report (Deliverable 06), which at a minimum shall include:
    - Web presence usage metrics
    - Count of content viewed by portal users
    - Count of content viewed by content title
    - Top 100 web presence query strings
    - Number of times each MySECO online service is accessed
    - Recommendations for site improvements
- Ensure contractor personnel comply with the Privacy Act, Title 5 U.S.C. §552a, and applicable agency rules and regulations. Provide evidence of compliance to the Government upon request.
- Manage MyCAA data retention in accordance with Government requirements. Backup data files shall be retained for no more than 45 days and used solely for system restoration. Backup records are not to be

used for retrieving individual records, and files must be destroyed through secure erasure, deletion, or overwriting.

C-6.5 REPORTING AND ANALYTICS

The contractor shall provide reporting and analytics capabilities across SECO applications to support program oversight and data-driven decisions. The Contractor shall provide a **Quarterly Analytics Report** (Deliverable 07) within 20 days after the end of each quarter that captures SECO application usage, spouse engagement trends, and program outcomes, and includes recommendations for improvements to functionality, content, and user experience.

- Develop reporting functionality that captures application usage, spouse engagement, and program outcomes.
- Provide ad hoc reports to the Government upon request, ensuring accuracy and timeliness.
- Recommend improvements to reporting functions to enhance insight into user behavior, partner engagement, and program performance.

C-6.6 CYBERSECURITY AND COMPLIANCE

The contractor shall provide comprehensive cybersecurity services for the SECO applications in compliance with DoD, DISA, and MC&FP cybersecurity directives, policies, and procedures. The contractor shall support the Risk Management Framework (RMF) process using the DoD Enterprise Mission Assurance Support Service (eMASS) platform and ensure that the SECO applications attain and sustain Government-issued Authorities to Operate (ATO).

- Implement and maintain all applicable DISA Security Technical Implementation Guides (STIGs) and Security Requirements Guides (SRGs). Conduct recurring assessments to verify compliance and provide results to the Government.
- Develop, update, and maintain eMASS package(s) for the SECO applications. Ensure packages reflect current system configurations, vulnerabilities, and risks to support timely Government evaluation and authorization decisions.
- Monitor SECO applications and infrastructure to detect vulnerabilities, misconfigurations, and anomalous activity. Document findings in eMASS and coordinate mitigation strategies with the Government.
- The Contractor shall provide a Quarterly Cybersecurity Compliance Report within 20 days after the end of each quarter, detailing the status of STIG and SRG implementation, vulnerability scan results, POA&M updates, ATO status, and any identified risks with recommended mitigation actions at a minimum.
- The contractor shall conduct risk and vulnerability analyses, assessments, and reporting to support ongoing compliance management.
- Identify, document, and recommend remediation for system vulnerabilities. Escalate high-risk vulnerabilities immediately to the Government with recommended actions. Track all vulnerabilities to closure through Plans of Action and Milestones (POA&Ms) in eMASS.
- Support MC&FP incident response policy and procedures by analyzing, reporting, and remediation of security incidents. All incidents are to be reported in the MC&FP Incident Reporting Information System (IRIS) unless directed otherwise by the government. Provide initial reporting within required timelines and submit final incident reports and lessons learned, as directed.
- Apply secure coding standards, code review, and security-by-design principles in all development and maintenance activities to prevent the introduction of new vulnerabilities.
- Safeguard Controlled Unclassified Information (CUI), personally identifiable information (PII), and other sensitive data through encryption, access control, and secure transmission protocols in accordance with DoD and MC&FP privacy requirements.

- Ensure all SECO applications reside within hosting environments that maintain an active ATO. Following ATO issuance, support Government-led Information Assurance processes by providing updates, documentation, and technical input.
- Maintain the electronic interface with the Defense Enrollment Eligibility Reporting System (DEERS) to validate spouse eligibility for MyCAA program participation, ensuring the interface is secure and operational at all times.
- Contractor personnel performing cybersecurity and information assurance functions shall hold and maintain certifications in accordance with DoD 8140.03 (Cyber Workforce Qualification and Management Program), ensuring qualifications remain current throughout contract performance.

C-6.7 USER EXPERIENCE
The contractor shall ensure SECO applications deliver a positive, accessible, and user-centered experience for military spouses and stakeholders.

- Apply Human-Centered Design (HCD) principles to all SECO applications, ensuring usability and inclusivity.
- Ensure cross-device responsiveness, supporting desktops, tablets, and mobile devices.
- Provide a unified web portal community where spouses can find employment opportunities, connect with vetted MSEP partners, and access SECO resources.
- Recommend UX enhancements based on user feedback, analytics, and evolving best practices.

C-6.8 HELP DESK SUPPORT
The contractor shall provide responsive, reliable, and professional help desk services to support SECO stakeholders, including school officials, Military OneSource consultants, partners, and VEMIS users.

- Provide help desk services Monday–Friday, 8:30 a.m. – 5:30 p.m. Eastern Time (excluding federal holidays). Services shall be available via both web-based and telephonic channels.
- Support requests shall include assistance with the Academic Institutions (AI) Portal, functional website issues, financial assistance eligibility forms, and other SECO-related applications.
- Provide dedicated MyCAA program support, including processing of school invoices for Government review, resolving credit card declines, processing spouse refunds, and correcting financial assistance documents when discrepancies arise.
- Record all calls with schools and retain recordings for 100 days. A minimum of five calls per quarter will be reviewed by the Government. The call recording system must be DoD-approved.
- Respond to calls and emails within 48 hours of receipt. Callback messages must be taken for less than 25% of calls, with 95% of callbacks completed within 48 hours. Follow-up attempts must be completed 100% of the time, as agreed to by the caller. Customer complaints shall not exceed 5% of total interactions.
- Provide ongoing technical support throughout the contract period to resolve identified technical defects, coordinating with the Government to track resolution status.

C-7.0 DELIVERABLES
C-7.1 The Contractor shall provide the following deliverables in accordance with this PWS. All deliverables shall be submitted electronically in Microsoft Office format (Word, Excel, or PowerPoint) or as otherwise directed by the Government.

No.	Deliverable	Description	Frequency / Due Date
01	Monthly Status Report	Summary of contract activities, accomplishments, issues, risks, and planned actions.	10th of each month
02	Monthly Section 508 Compliance Report	Documentation of accessibility testing results, issues identified, and remediation actions taken across SECO applications.	15th of each month
03	Application Enhancement & Modernization Report	Report detailing system enhancements, modernization activities, and integration of new technologies.	Twice per year
04	Zero Defects Usability & Quality Framework SOP	SOP documenting processes to minimize software/application defects prior to production deployment. Initial version due within 60 days of Period of Start (PS), with updates provided annually.	Initial: within 60 days of PS; Annual update thereafter
05	Monthly MySECO Web Portal Report	Metrics on portal usage, content views, top queries, access counts by service, and recommended improvements.	15th of each month
06	Quarterly Cybersecurity Compliance Report	Summary of cybersecurity status including STIG/SRG compliance, vulnerability management, POA&M status, and ATO updates.	Within 20 days after end of each quarter
07	Quarterly Analytics Report	Data-driven analysis of SECO application usage, spouse engagement, program outcomes, and recommendations.	Within 20 days after end of each quarter
08	Quarterly DCWF Workforce Certification Report	Listing of contractor personnel mapped to DCWF work roles, with certifications and qualifications.	Within 20 days after end of each quarter and within 5 business days of new personnel onboarding

7.2 VEMIS requires the Following:

Deliverable	Description	Delivery Date
Service Quarterly Reports	Authorized Service Users will use the online VEMIS Application to enter data and finalize their Quarterly Reports.	The quarterly report, data shall be submitted no later than twenty (20) days after the end of the quarter. Reference VEMIS online-user Guide and DoD Instruction.
Services Annual Report	Authorized Service Users will us the online VEMIS Application to enter data and finalize their Annual Report.	Ensure the Services use the online VEMIS Application, User Guide and DoD Instruction, to submit the Services Annual report data no later than 15 November each year.
Officer and Enlisted End Strength by Education Minus Coast Guard	A report of Officers and Enlisted End Strength by Education Levels for the selected component and fiscal year.	Annual report due no later than 15 November each year.
VOLED Fact Sheet	A detailed report of Enrollments, Degrees Completed, Expenditures, and DANTES Testing numbers broken out by service for the selected component and fiscal year.	Annual report Due date is no later than 15 November each year.
DoD Summary	A summary report of Troop Strength, Education Levels, Enrollments, Operational Costs, degrees Completed, SOC, CCAF Data, and Total Expenditures for the selected components and fiscal year.	Annual DoD Summary and VEMIS report due date is no later than 15 November each year.
VEMIS Report	A complete report of the entire VEMIS report for the selected components and fiscal year.	Annual DoD Report due date is no later than 15 November each year.

1. Provide reporting capability with export to Excel capability for OUSD and Services to input data required to populate DoD MOU VEMIS Report (data to be retrieved from the DoD MOU data system and from data provided by the Services to include Army, Navy, Air Force and Marine Corps.
2. Capability to allow VEMIS user to view the DoDI 1325.22 reporting requirements so that the VEMIS user can easily view the status of all data items.
3. Catalog all DoDI 1325.22 requirements and crosswalk with Service provided data. This creates relationships between Service specific databases and the VEMIS database.
4. Identify gaps within the current data construct at the DoD level for supporting DoDI 1325.22 (e.g., missing data elements within the VEMIS data construct).
5. Identify Service gaps and create the appropriate relationships between the data and reporting requirements to minimize (e.g., VEMIS construct supports but Service specific data may not support).
6. Leverage current VEMIS data fields for creating standardized data dictionary.

7. Enhance the VEMIS database to directly support all DoDI 1325.22 reporting requirements (e.g., add attributes to existing data elements, create new data elements).
8. Implement the source for each Service's data to support each data requirement (e.g., implement the data relationships).
9. Review Gap analysis to assure all DoDI 1325.22 reporting requirements are met in the database.
10. Provide reporting capability for Aggregated Data Reports (Accreditation Status, sector status, and SOC/Non-SOC status) to populate the DoD MOU VEMIS Report.

C-8.0 COMMON ACCESS CARD

All contractor personnel requiring logical or physical access to Department of Defense (DoD) installations, facilities, controlled spaces, or information systems, including access to VEMIS, Cyber Security resources, or any other DoD assets as determined by the Government, shall possess a valid Common Access Card (CAC) as the principal identity credential for DoD, enabling interoperable access consistent with DoDI 5200.46, contingent upon meeting eligibility requirements such as U.S. citizenship or approved immigration status, and a favorably adjudicated background investigation appropriate for the position's risk level, initiated via electronic fingerprint submission and completion of the required investigative Standard Forms (SF) through the National Background Investigation Services (NBIS) electronic application (eApp). The type of background investigation required is determined by the position sensitivity and risk level: **Tier 1 (Low Risk, Non-Sensitive) requires a background investigation adjudicated via SF85; Tier 2 (Moderate Risk Public Trust) requires a background investigation adjudicated via SF85P; Tier 3 (Non-Critical Sensitive National Security, Secret/L access) requires a background investigation adjudicated via SF86; Tier 4 (High Risk Public Trust) requires a background investigation adjudicated via SF85P; Tier 5 (Critical Sensitive and Special Sensitive National Security, Top Secret/SCI/Q access) requires a background investigation adjudicated via SF86.** An interim CAC may be authorized at the DoD Component's discretion pending completion of the appropriate background investigation but does not guarantee final approval. Contractors must plan for administrative lead-time, maintain strict control and accountability of CACs, returning them immediately upon employee termination, expiration, when no longer required, or upon contract completion/termination, and report any loss or theft immediately, while ensuring personnel are aware of their responsibilities under DoDI 5200.46, undergo annual security training, and comply with all Government instructions, as failure to comply may result in denial of access, corrective actions, withholding of payment, or contract termination. Security managers (SSO/FSO) will use the "NBIS Agency" login to process and manage background applications through the investigations process.

C-9.0 SECURITY INVESTIGATION REQUIREMENTS

Reference(s): Executive Order 13467, "Reforming Processes Related to Suitability for Government Employment, Fitness for Contractor Employees, and Eligibility for Access to Classified National Security Information," June 30, 2008, Executive Order (E.O.) 13488, "Granting Reciprocity on Excepted Service and Federal Contractor Employee Fitness and Reinvestigating Individuals in Positions of Public Trust," January 16, 2009, DoDI 5200.46 "DoD Investigation and Adjudicative Guidance for Issuing and the Common Access Card (CAC), and DoDM 5200.02, "Procedure for the DoD Personnel Security Program (PSP) and 5 Code of Federal Regulations 731 Suitability and Fitness, and Homeland Security Presidential Directive 12 (HSPD-12) which mandates secure and reliable identification for Federal employees and contractors.

It is the responsibility of the Contractor to ensure all administrative requirements are met to facilitate completion of the required background investigations and identity management protocols. This includes, but is not limited to, ensuring suitability for performance of duties involving access to CUI, PII, or Privacy Act data. The Contractor shall ensure that personnel performing IT/Cybersecurity roles possess a minimum of an interim DoD Tier 3 (T3/T3R) investigation (or higher), while personnel with non-IT/Cybersecurity duties, lacking direct access to sensitive data, possess a favorably adjudicated Tier 1 investigation. To facilitate this, the Contractor must submit the National Background Investigation Services (NBIS) Electronic Application (eAPP), appropriate investigative Standard Forms (SF), identity proofing as defined by HSPD-12, electronic fingerprints via Secure Web Fingerprint Transmission (SWFT) to DCSA, Optional Form 306 (OF 306), and other documents as required by current regulations. Immediately after contract award and throughout the period of performance for this contract, the Contractor shall perform the following background and clearance activities:

At a minimum, the Contractor shall first conduct an industry-standard pre-employment background check on all current and potential candidates that will perform work under this contract. The Contractor will also have the individual complete OF 306, Declaration for Federal Employment. If any derogatory information is revealed on the OF 306 and the Contractor chooses to move forward with a candidate for whom derogatory information exists, the derogatory information must be submitted to the Government with mitigating documents by the Contractor. The Government will assess the derogatory information with the mitigating documentation provided and make a suitability and fitness determination to the eligibility to perform work under this contract.

a. Derogatory information for the purposes of this requirement will be evaluated by DoD adjudicators' application of 5 CFR § 731 investigation and adjudications standards to fitness. The Government will not approve any counselor whose background check reveals any derogatory information with no mitigated documentation. If any contractors OF 306 reveals any derogatory information that falls under any of the 5 CFR § 731.202(b) criteria, Government approval shall be required before continuing actions for assignment under the contract.

b. The review of the derogatory information will be conducted by the Program Office, Contracting Officer Representative (COR), and Office of Personnel Management trained personnel security specialists, to determine if the potential counselor is favorable or not suitable for the program. If an individual is found not suitable, the Contracting Officer (CO) will provide notification via a letter to the Contractor of the derogatory or adjudication results.

c. The Contractor shall facilitate any adjudication dispute and appeal requests, including communication with the Government, on the behalf of individuals that the Contractor submits for background checks.

d. The only role the CO has in the resolution process is notification to the Contractor of the Government's final decision. The Contractor shall in the resolution process, after notifying or being notified that derogatory information exists on a potential counselor, execute the COR and program office decision relative to the adjudication outcome.

e. Contractor Employees occupying Moderate Risk public trust level positions must undergo a reinvestigation every five years for the duration of the contract, or if there is a break in service to a federal contract service of 24 months or more. Any position designated as a public trust or national security position requires a periodic reinvestigation. In addition, all positions are subject to re-evaluation if new adverse information is disclosed by the individual or discovered that could affect the individual's suitability for employment and/or access to unclassified sensitive information.

After a prospective candidate has cleared all the pre-screening steps above and been deemed eligible by the Government the candidate will move forward with Tier 1 processing.

Current candidates or contract personnel who have previously received an acceptable Tier 1 background in the last 3 years shall provide proof to the prime Contractor, who will verify through the Government, prior to performing work under this contract.

The Contractor Facility's Security Officer (FSO) or designee initiates the NBIS eApp using the Defense Information System for Security (DISS) based on the new Federal Investigative Standards. The FSO will review the application package for accuracy and completeness and provide the individual with written notification that the information will be used for no other purposes within the company. Furthermore, the Contractor shall adhere to all identity proofing procedures as outlined in applicable agency guidance documents implementing HSPD-12, which may include in-person verification of identity documents and enrollment in a Personal Identity Verification (PIV) program for CAC issuance, as directed by the Government. This includes ensuring that all submitted identity documentation meets the standards defined by the agency's PIV program and is presented in a manner that is resistant to fraud or alteration. The Contractor is also responsible for the proper safeguarding and management of CACs issued to their personnel, including prompt reporting of lost or stolen cards and ensuring their timely return upon contract completion or termination of employment.

C-10.0 FACILITY CLEARANCE (FCL)
In accordance with the National Industrial Security Program Operating Manual (NISPOM), codified in 32 CFR Part 117, and the Task Order Security Classification Specification, DD Form 254 (Attachment X), the Contractor is required to obtain and maintain a valid Facility Clearance (FCL) equal to or higher than the highest classification level specified on the DD Form 254. To be eligible for award under this Performance Work Statement (PWS), the Contractor must possess, at a minimum, a valid SECRET Facility Clearance at the time of proposal submission. The Contractor is solely responsible for all costs associated with obtaining and maintaining the required FCL and individual personnel security clearances necessary to fulfill the requirements of this contract, including all associated personnel security investigations (PSIs). Failure to maintain the required FCL throughout the period of performance may result in termination of the contract.

C-11.0 APPLICABLE MC&FP POLICIES
The Contractor shall comply with all applicable MC&FP IT, Cybersecurity, and Privacy policies listed below. These policies are incorporated by reference into this PWS. Updated versions, when issued by MC&FP, shall automatically apply to the Contractor's performance under this contract.
[CUI] MCFP [CM] IT CMP3
[CUI] MCFP [IR] Incident Response Policy and Procedural Guide
[U] MCFP Rules of Behavior [RoB]
[U] MCFP [AC] Access Control Policy and Procedures
[U] MCFP [AT] Awareness & Training Policy and Procedures
[U] MCFP [AU] Audit & Accountability Policy and Procedures
[U] MCFP [CA] Security A&A and Monitoring Policy & Procedures
[U] MCFP [CP] IT Contingency & COOP Plan
[U] MCFP [IA] Ident & Authentication Policy and Procedures
[U] MCFP [MA] Maintenance Policy and Procedures
[U] MCFP [MP] Media Protection Policy and Procedures
[U] MCFP [PE] Physical & Environmental Policy and Procedures
[U] MCFP [PL] Planning Policy and Procedures
[U] MCFP [PM] Privacy Policy and Procedures
[U] MCFP [PS] Personnel Security Policy & Procedures
[U] MCFP [PT] PII Processing & Transparency Policy and Procedures
[U] MCFP [RA] Risk Assessment Policy and Procedures
[U] MCFP [SA] System & Services Acquisition Policy and Procedures
[U] MCFP [SC] System & Comm Protection Policy and Procedures
[U] MCFP [SI] System & Info Integrity Policy and Procedures
[U] MCFP [SR] Supply Chain Risk Mgmt Policy & Procedures

C-12.0 TRAINING, PERMITS, AND COMPLIANCE
Per Defense Federal Acquisition Regulation Supplement (DFARS) 252.239-7001, and other applicable DoD regulations, the contractor personnel supporting IT and Cybersecurity functions shall be appropriately certified upon contract award.

C-13.0 IT/CYBERSECURITY (IA) HUMAN CAPITAL TRAINING AND CERTIFICATION COMPLIANCE (DOD DIRECTIVE (DODD) 8140.01)

The contractor shall adhere to the DoD Cyber Workforce Management Program (specifically DoDD 8140.01, DoDI 8140.02, and DoDM 8140.03), as well as the requirements that are specified in MC&FP's DoD Cyber Workforce Framework (DCWF) Governing Mandates artifact. In this regard, the contractor's IT, Cybersecurity, and Program Management personnel, including but not nearly limited to their help desk team members, shall be explicitly associated with at least one DCWF Work Role Identifier. On a quarterly basis, as well as within five business days of new personnel onboarding, the contractor shall provide MC&FP's CIO and IAM with the qualification and certification details for every DCWF work role on the contract (Deliverable 08).

C-14.0 SECTION 508 (WCAG 2.0) COMPLIANCE AND VALIDATION (APPLICABLE TO ALL PWS TASKS)

The contractor shall adhere to Section 508 of the Rehabilitation Act of 1973, as amended (29 U.S.C. 794d) and Revised Section 508 Standards in 36 Code of Federal Regulations (CFR) § 1194.1 and Appendices A, C, and D. Section 508 requires that when Federal agencies develop, procure, maintain, or use ICT, Federal employees with disabilities have access to and use of information and data that is comparable to the access and use by Federal employees who are not individuals with disabilities. Section 508 also requires that individuals with disabilities, who are members of the public seeking information or services from a Federal agency, have access to and use of information and data that is comparable to that provided to the public who are not individuals with disabilities, unless an undue burden would be imposed on the agency.

The contractor shall adhere to DoD Manual (DoDM) 8400.01 (November 14, 2017), "Accessibility of Information and Communications Technology (ICT),". DoDM 8400.01 further implements Section 508 of the Rehabilitation Act of 1973 and Subpart 39.2 of the FAR via the assignment of responsibilities and procedures. DoDM 8400.01 ensures that individuals with disabilities have access to and use of ICT that the DoD develops, acquires, maintains, or uses. It further ensures that the access and use of ICT are comparable to what individuals without disabilities are provided. The contractor shall ensure that the list is easily accessible by typical users beginning at the time of award.

The contractor shall provide personnel with the appropriate certifications and/or training to perform the functional role assigned. The Government is not responsible for providing funding or training for contractor personnel to obtain a certification and/or to take training that would otherwise be required in advance of employment to perform that functional role. Exceptions to certification and training requests may be considered when the required knowledge to perform the role advances beyond the current operational or technical environment or if the certification and training is not available to the general public.

C-15.0 OTHER DIRECT COSTS

The following are authorized Other Direct Cost expenses under this contract: Authorized travel expenses, software, product licenses and ancillary web-based product purchases (e.g., video production software: para 5.5; 508 testing software: para 5.1.2.1; external certificate authorities and call recording software; para 10.0).

The contractor will be reimbursed for authorized travel made in association with the performance of this contract to include per diem, lodging, airfare, rental car, and incidental expenses. All travel must be pre-approved by the COR or Contract Officer. Travel cost will be reimbursed per the following guidelines:

1) The Contractor shall submit itemized receipts for commercial transportation, lodging, rental car, fuel, personal vehicle mileage, parking, and incidental expenses on a monthly basis with the monthly invoice. Food/meal receipts are not required.
2) A fee for profit on travel cost and per diem is NOT authorized.
3) Commercial transportation is ONLY authorized at the restricted fare rate not to exceed regular coach rate. Baggage fees are reimbursable up to two (2) bags per authorized traveler. Fees for excess baggage weight are non-reimbursable.
4) Per diem and incidental expense rate shall be reimbursed as follows: in accordance with DoD published rates for geographic area of travel, which can be found at https://www.travel.dod.mil/Travel-Transportation-Rates/Per-Diem/Per-Diem-Rate-Lookup/. Per

diem consist of local meals and incidentals at the rate of 75% of published rate for geographic area of travel for the first and last day of travel, and 100% of published rate for remaining travel days.

5) Every attempt should be made to utilize Navy Gateway Inns and Suites for lodging if practical and available. Lodging cost will be reimbursed at the actual expense rate not to exceed the current maximum daily rate listed on the above defense travel website, to include fees and taxes.

Contact the Contracting Officer or Contracting Officer's Representative for reimbursement clarification if required prior to travel.

C-16.0 PERFORMANCE CRITERIA. Operational Hours. The normal duty schedule is between the hours of 0800 - 1700. The duty schedule is subject to change based on government requirements.

C16.1 Federal Holidays - The U.S. Government recognizes the following Legal Holidays established by Federal Statute:

- New Year's Day – January 1
- Birthday of Martin Luther King Jr.– Third Monday in January
- Washington's Birthday – Third Monday in February
- Memorial Day – Last Monday in May
- Juneteenth National Independence Day- June 19
- Independence Day – July 4
- Labor Day – First Monday in September
- Columbus Day – Second Monday in October
- Veterans Day – November 11
- Thanksgiving Day – Fourth Thursday in November
- Christmas Day – December 25

C-16.2 When one of the above designated legal holidays falls on a Sunday, the following Monday will be observed as a legal holiday. When a legal holiday falls on a Saturday, the proceeding Friday is observed as a legal holiday. The list of holidays relates to Government duty days and is not intended to supplement or otherwise alter the provisions of any Wage Determination or Collective Bargaining Agreement regarding applicable paid holidays.

C-16.3 In addition to the days designated as holidays, the Government observes the following days:

- Any other day designated by Federal Statute
- Any other day designated by Executive Order
- Any other day designated by a Presidential Proclamation

C-16.4 It is understood and agreed between the Government and the Contractor that observance of such days by Government personnel shall not be a reason for an additional period of performance or entitlement of compensation except as set forth within the contract. In the event the Contractor's personnel work during a holiday or other day observed by the Government employees (see above holiday listing), the Contractor may reimburse them; however, no form of holiday or other premium compensation will be reimbursed by the Government, either as a direct or indirect cost, other than their normal compensation for the time worked.

C-16.5 When the Department of Defense grants excused absence to its employees, the Contractor agrees to provide sufficient personnel to perform critical tasks already in operation or scheduled, and the Contractor shall be guided by the instructions issued by the Contracting Officer or the Contracting Officer's Representative (COR).

C-16.6 If Government personnel are furloughed, the Contractor shall contact the Contracting Officer or the COR to receive direction. It is the Government's decision as to whether contract support will be affected as a result of Government shutdown and/or furloughed Government employees.

C-16.7 Nothing in this section abrogates the rights and responsibilities of the parties relating to any "stop work" clause or provision included in other sections of the contract.

C-16.8 Overtime is not authorized under this contract.

C-17.0 SECURITY. The Contractor shall comply with all applicable Department of Defense (DoD) security regulations and procedures during the performance of this contract. The Contractor shall not disclose and must safeguard sensitive information, computer systems and data, Privacy Act data, and Government and contracted personnel work products that are obtained or generated in the performance of this contract.

C-17.1 The Contractor is responsible for safeguarding information of a sensitive nature. Failure to safeguard any privileged information which may involve the Contractor or the Contractor's personnel or to which they may have access may subject the Contractor and/or the Contractor's personnel to criminal liability under Title 18, section 793 and 798 of the United States Code.

C-17.2 Clearances - All Contractor employees supporting this project require a minimum of a National Agency Check and Inquiries (NACI) clearance.

C-18.0 CONFIDENTIALITY. This project and all materials provided to the Contractor by the Government and results, conclusions and recommendations obtained thereof shall be considered confidential in nature and treated with the same level of care that the Contractor treats its own confidential business information. The information shall not be disclosed, copied, modified, used (except in the completion of this project) or otherwise disseminated to any other person or entity at any time to include, but not limited to inclusion in any database external to the Government without the Government's express written consent.

C-19.0 INTELLECTUAL PROPERTY RIGHTS. No data provided to, or developed by, the Contractor shall be used for any purpose other than this contract. All information (data files and hard copy) become the property of the government and the Contractor shall return them to the designated program manager or COR, at the completion of the task.

(END OF SECTION C)

PART I, SECTION D: PACKAGING AND MARKING- NOT APPLICABLE

(END OF SECTION D)

PART I, SECTION E: INSPECTION AND ACCEPTANCE

E-1. SURVEILLANCE, INSPECTIONS, AND ACCEPTANCE. All solutions, products, manuals, reports and deliverables must be approved by Technical Representative as applicable, then delivered to the COR for final approval as necessary.

The Contractor is responsible for the overall quality of contract performance and for the management of its own workforce. The COR may clarify Contractor responsibilities within the requirements of the PWS. All work to be performed under this contract is subject to Government surveillance.

CLAUSE INCORPORATED BY REFERENCE

NARS.E001 INSPECTION OF SUPPLIES (AUG 1996)

(END OF SECTION E)

PART I, SECTION F: DELIVERIES OR PERFORMANCE

F-1. PERIOD OF PERFORMANCE. Date of contract award with a base year of one (1) year, and four (4) one-year option periods.

F-2. DELIVERABLES. See PWS section C-7.0

CLAUSE INCORPORATED BY REFERENCE

NARS.F009 F.O.B. DESTINATION
NARS.F011 NAFI DELAY OF WORK

(END OF SECTION F)

PART I, SECTION G: CONTRACT ADMINISTRATION DATA

NARS.G001 INVOICING (OCT 2024)

NAF Clause NARS.I111 “Invoices.” An invoice is a written request for payment under the contract for supplies/equipment delivered or for services rendered. In order to be proper, an invoice must include (and in order to support the payment of interest penalties) the following:

(a) Invoice Date;
(b) Name of Contractor;
(c) Contract number (include order number, if any), contract description of supplies or services, quantity, contract unit of measure, unit price, and extended total;
(d) Shipment number and date of shipment;
(e) Name and address to which payment is to be sent (name must be the same as that in the contract or on a proper notice of assignment);
(f) Name (where practicable), title, telephone number and mailing address of person to be notified in the event of a defective invoice; and
(g) Any other information or documentation required by other provisions of the contract (such as evidence of shipment).

Invoices shall be prepared and submitted to the point of contact identified in the following section titled ‘Appointment of Contracting Officer’s Representatives’. Invoices shall be submitted by the Contractor on a monthly basis for the monthly service and will be paid in arrears. The NAFI will not make a payment for deliverables that have not been inspected and accepted by the Contracting Officer's Representative.

(End of clause)

NARS.G002 ACCOUNTING CLASSIFICATION (OCT 2024)

ACCOUNTING AND APPROPRIATION DATA: NONAPPROPRIATED FUNDS

Company Code: 6515
Cost Center: 13118
GL Account: 783089
No appropriated funds of the United States will be obligated, due or payable to a Contractor as a result of this solicitation and, if awarded, any resulting contract.

(End of clause)

NARS.G003 FINAL PAYMENT (OCT 2024)

Invoices for final payment must be identified and submitted at the end of the contract and no further charges are to be incurred along with a "release of claims" memo. The closeout invoice, or a written notification that final invoicing has been completed, must be submitted within 60 working days of contract completion. A copy of a Final Acceptance Completion Report must be attached to the final invoice. If the Contractor requires an extension to the contract, a request with supporting rationale must be received by the COR and the Contracting Officer a minimum of 60 days prior to the end of the contract.

(End of clause)

NARS.G004 APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE (OCT 2024)

a. The Contracting Officer's Representative (COR) will be identified by separate letter at contract award.

b. The COR will act as the Contracting Officer's representative for technical matters, providing technical direction and discussion as necessary with respect to the specification or performance work statement, and monitoring the progress and quality of Contractor performance. The COR is not a Contracting Officer and does not have authority to take any action, either directly or indirectly, that would change the pricing, quantity, quality, place of performance, delivery schedule, or any other terms and conditions of the contract, or to direct the accomplishment of effort which goes beyond the scope of the performance work statement in the contract.

c. It is emphasized that only a Contracting Officer has the authority to modify the terms of the contract, therefore, in no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the Contractor and anyone other than the Contracting Officer be effective or binding on the Government. If, in the opinion of the Contractor, an effort outside the existing scope of the contract is requested, the Contractor shall promptly notify the Contracting Officer in writing. No action shall be taken by the Contractor under such direction unless the Contracting Officer has issued a contractual change or otherwise resolved the issue.

(End of clause)

(END OF SECTION G)

PART I, SECTION H: SPECIAL CONTRACT REQUIREMENTS- NOT APPLICABLE

(END OF SECTION H)

PART II –SECTION I CONTRACT CLAUSES

NONAPPROPRIATED FUND CONTRACT CLAUSES

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PART II, SECTION I – NON-APPROPRIATED FUND CLAUSES continued

NARS.I001 DEFINITIONS (JUN 2020)

When a solicitation provision or contract clause uses a word or term that is defined in CNIC M-7043.1 the Non-appropriated Fund Acquisition Rules Manual (NAR), the word or term has the same meaning as the definition in CNIC M-7043.1 NAR Part 02 in effect at the time the solicitation was issued, unless-

a. The solicitation, or amended solicitation, provides a different definition;

b. The contracting parties agree to a different definition;

c. The part, subpart, or section of the NAR where the provision or clause is prescribed provides a different meaning;

d. The word or term defines an acquisition-related threshold, and if the threshold is adjusted for inflation as set forth in CNIC M-7043.1 NAR Part 02, then the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment.

(End of clause)

NARS.I002 LEGAL STATUS NON-APPROPRIATED FUND INSTRUMENTALITY (OCT 2024)
The NAFI is an integral part of the Department of Defense and is an instrumentality of the United States Government. NAFI contracts are United States Government contracts; however, they do not obligate appropriated funds of the United States. NO APPROPRIATED FUNDS OF THE UNITED STATES WILL BECOME DUE OR BE PAID A CONTRACTOR BY REASON OF THIS CONTRACT.

(End of clause)

NARS.I010 EXAMINATION OF RECORDS (NAFI 1006 MAR 2014)
a. The Contractor agrees that the Contracting Officer or a duly authorized representative(s) will have the right to examine and audit the books and records of the Contractor directly pertaining to the contract during the period of the contract and until expiration of three years after the final payment under the contract.

b. The Contractor must include this clause in all subcontracts.

(End of Clause)

NARS.I012 INSURANCE (NAFI 1008 OCT 2013)
a. The Contractor will, at its own expense, provide and maintain during the entire performance period of this contract at least the insurance coverage as stated in this contract. In no event will the coverage be less than the minimum requirements established by applicable state and local regulations and laws for the risk associated with the services to be provided by the contract. The Contractor will be fully responsible to the NAFI for errors and omissions of its associates' and subcontractors' under this contract.

b. The Contractor will furnish to the Contracting Officer a current certificate of insurance prior to the commencement of performance under the contract. The “INSURED” block of the Certificate of Insurance must list both the Contractor’s name / (or Contractor’s d.b.a. name) and the contract number. The Certificates of Insurance will evidence that all lines of insurance coverage required by the contract are in effect, and that not less than thirty (30) days prior written notice will be provided to the Contracting Officer in the event of modification, cancellation, or non-renewal of any portion of the insurance coverage(s). All certificates of insurance must list the NAFI as the certificate holder, name the NAFI and the United States as additional insureds, and carry an endorsement waiving the Contractor’s rights to subrogation against the NAFI and the United States.

(End of Clause)

NARS.I013 HOLD AND SAVE HARMLESS (NAFI 1007 APR 2014)
a. The Contractor agrees to indemnify and hold harmless the NAFI and any other agency or instrumentality of the United States, and their officers, agents, and employees, from any loss, expense, damage, injury, claim, suit or judgment (including administrative actions taken against the NAFI by other federal, state or local agencies) arising from the contractor's (employee's, agent's or subcontractor's) acts or omissions or the items/services provided pursuant to the contract (including any patent, copyright, or trademark infringement claimed by a third party in connection with the items/services provided by the contractor).

b. Nothing contained herein, however, will relieve or be construed as relieving the NAFI or any other agency or instrumentality of the United States from any liability resulting from its negligence.

(End of Clause)

NARS.I014 ADVERTISEMENTS (NAFI 1005 MAY 2013)
a. The Contractor must not represent in any manner, expressly or by implication, that items or services purchased or sold under this contract are approved or endorsed by any element of the U.S. Government, including the NAFI.

b. All Contractor advertisements that refer to the NAFI or a NAFI activity will contain a statement that the advertisement was neither paid for nor sponsored, in whole or in part, by the U.S. Government or the NAFI.

(End of Clause)

NARS.I015 ORDER OF PRECEDENCE (OCT 2024)
In the event of an inconsistency between provisions of this solicitation/contract, the inconsistency will be resolved by giving precedence in the following order:

(1) Description of the supplies/equipment or services and prices/costs;
(2) Description/specifications/work statement;
(3) Special contract requirements;
(4) Contract clauses;
(5) Other provisions of the solicitation/award; and;
(6) Any portion of the Contractor's bid or proposal that has been incorporated by reference and made a part of the contract.

(End of Clause)

NARS.I045 RESTRICTION ON CERTAIN FOREIGN PURCHASES (FEB 2021)
a. Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR Chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

b. Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas. Lists of entities and individuals subject to economic sanctions are included in OFAC's List of Specially Designated Nationals and Blocked Persons at https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists. More information about these restrictions, as well as updates, is available in the OFAC's regulations at 31 CFR Chapter V and/or on OFAC's website at https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information.

c. The Contractor shall insert this clause, including this paragraph (c), in all subcontracts.

(End of clause)

NARS.I050 TAXES (NAFI 1018.1 NOV 2014)
a. Except as may be otherwise provided in this contract, the contract price includes all taxes, duties, or other public charges in effect and applicable to this contract on the contract date, except any tax, duty or other public charge which by law, regulation or governmental agreement is not applicable to expenditures made by the

NAFI or on its behalf: or any tax, duty, or other public charge from which the Contractor, or any subcontractor hereunder, is exempt by law, regulation or otherwise. If any such tax, duty, or other public charge has been included in the contract price, through error or otherwise, the contract price will be correspondingly reduced.

b. If for any reason, after the contract date of execution, the Contractor or subcontractor is relieved in whole or in part from the payment or the burden of any tax, duty or other public charge included in the contract price, the contract price will be correspondingly reduced; or if the Contractor or a subcontractor is required to pay in whole or in part any tax, duty, or other public charge which was not included in the contract price and which was not applicable at the contract date of execution the contract price will be correspondingly increased.

c. No adjustment of less than $250 will be made in the contract price pursuant to this clause unless otherwise waived at the unilateral discretion of the Contracting Officer.

d. With respect to foreign taxes, NAFI's located in foreign countries will neither pay to nor collect for any foreign country or political subdivision any tax unless the United States has consented to levy collection by treaty, convention, or executive agreement.

(End of Clause)

NARS.I052 PAYMENTS (APR 1984)
The NAFI will pay the Contractor, upon the submission of proper invoices or vouchers, the prices stipulated in this contract for supplies delivered and accepted or services rendered and accepted, less any deductions provided in this contract. Unless otherwise specified in this contract, payment will be made on partial deliveries accepted by the NAFI if: The amount due on the deliveries warrants it; or; The Contractor requests it and the amount due on the deliveries is at least $1,000 or 50 percent of the total contract price.

(End of clause)

NARS.I053 DISCOUNTS FOR PROMPT PAYMENT (FEB 2002)
a. Discounts for prompt payment will not be considered in the evaluation of offers. However, any offered discount will form a part of the award, and will be taken if payment is made within the discount period indicated in the offer by the offeror. As an alternative to offering a discount for prompt payment in conjunction with the offer, offerors awarded contracts may include discounts for prompt payment on individual invoices.

b. In connection with any discount offered for prompt payment, time shall be computed from the date of the invoice. If the Contractor has not placed a date on the invoice, the due date shall be calculated from the date the designated billing office receives a proper invoice, provided the agency annotates such invoice with the date of receipt at the time of receipt. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or, for an electronic funds transfer, the specified payment date. When the discount date falls on a Saturday, Sunday, or legal holiday when Federal Government offices are closed and Government business is not expected to be conducted, payment may be made on the following business day.

(End of clause)

NARS.I059 DISPUTES (OCT 2024)
a. The contract is not subject to the Contract Disputes Act of 1978 (41 U.S.C. §§ 7101-7109). All disputes arising under or relating to this contract shall be resolved under this clause.

b. ‘Claims,’ as used in this clause, means the inability of a contractor and the Contracting Officer to reach a mutual agreement related to contractual issues in controversy resulting in the filing of a written demand or assertion seeking payment of money, adjustment or interpretation of contract, or other relief, and issuance of a Contracting Officer’s final decision. A voucher, invoice, or other routine request for payment that is not in dispute when submitted is not a claim under this clause. The submission may be converted to a claim under this clause, by complying with the submission requirements of this clause. If it is disputed either as to liability or amount or is not acted upon in a reasonable time.

(1) A claim by the Contractor shall be made in writing and submitted to the Contracting Officer for a written decision. A claim by the NAFI against the Contractor shall be subject to a written decision by the Contracting Officer.

(2) For Contractor claims exceeding $100,000, the Contractor shall submit with the claim a certification that contains the following statement: “Subject to the False Claim Act, 31 U.S.C. § 3729, I certify the claim is made in good faith; that the supporting data is accurate and complete to the best of my knowledge and belief; that the amount requested accurately reflects the contract adjustment for which the Contractor believes the NAFI is liable; and that I am duly authorized to certify on behalf of the Contractor. ”

c. The Contracting Officer's decision shall be final unless the contractor appeals as provided in paragraph (d) of this clause.

d. The Contracting Officer's final decision on claims may be appealed by submitting a written appeal to The NAF Final Appeal Authority with a copy to the Contracting Officer, within 30 calendar days of receipt of the Contracting Officer's final decision. Decisions of the NAF Final Appeal Authority are final and are not subject to further appeal.

e. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal, or action arising under the contract, and comply with any decision of the Contracting Officer.

(End of Clause)

NARS.I065 COMMERCIAL WARRANTY (NAFI 1017 APR 2014)

The Contractor agrees supplies or services furnished under this contract shall be covered by the most favorable commercial warranties the Contractor gives to any customer for such supplies or services. The rights and remedies provided herein are in addition to and do not limit any rights afforded to the NAFI by any other clause of this contract. Contractor shall provide printed terms and conditions of such warranty and comply with the Magnuson-Moss Warranty Act (15 U.S. CODE §2302). Warranty shall commence upon acceptance of the items and is in addition to other warranties of additional scope given by the Contractor.

(End of Clause)

NARS.I070 TERMINATION FOR CONVENIENCE (APR 2012)

a. The NAFI may terminate performance of work under this contract in whole or, from time to time, in part if the Contracting Officer determines that a termination is in the NAFI’s interest. The Contracting Officer shall terminate by delivering to the Contractor a Notice of Termination specifying the extent of termination and the effective date.

b. After receipt of a Notice of Termination, and except as directed by the Contracting Officer, the Contractor shall immediately proceed with the following obligations, regardless of any delay in determining or adjusting any amounts due under this clause:

(1) Stop work as specified in the notice.

(2) Place no further subcontracts or orders (referred to as subcontracts in this clause) for materials, services, or facilities, except as necessary to complete the continued portion of the contract.
(3) Terminate all subcontracts to the extent they relate to the work terminated.
(4) Assign to the NAFI, as directed by the Contracting Officer, all right, title, and interest of the Contractor under the subcontracts terminated, in which case the NAFI shall have the right to settle or to pay any termination settlement proposal arising out of those terminations.
(5) With approval or ratification to the extent required by the Contracting Officer, settle all outstanding liabilities and termination settlement proposals arising from the termination of subcontracts; the approval or ratification will be final for purposes of this clause.
(6) As directed by the Contracting Officer, transfer title and deliver to the NAFI:

> (a) The fabricated or unfabricated parts, work in process, completed work, supplies, and other material produced or acquired for the work terminated; and;
> (b) The completed or partially completed plans, drawings, information, and other property that, if the contract had been completed, would be required to be furnished to the NAFI.

(7) Complete performance of the work not terminated.
(8) Take any action that may be necessary, or that the Contracting Officer may direct, for the protection and preservation of the property related to this contract that is in the possession of the Contractor and in which the NAFI has or may acquire an interest.
(9) Use its best efforts to sell, as directed or authorized by the Contracting Officer, any property of the types referred to in paragraph (b)(6) of this clause; provided, however, that the Contractor:

> (a) Is not required to extend credit to any purchaser and;
> (b) May acquire the property under the conditions prescribed by, and at prices approved by, the Contracting Officer. The proceeds of any transfer or disposition will be applied to reduce any payments to be made by the NAFI under this contract, credited to the price or cost of the work, or paid in any other manner directed by the Contracting Officer.
> (c) The Contractor shall submit complete termination inventory schedules no later than 120 days from the effective date of termination, unless extended in writing by the Contracting Officer upon written request of the Contractor within this 120-day period.
> (d) After expiration of the plant clearance period, the Contractor may submit to the Contracting Officer a list, certified as to quantity and quality, of termination inventory not previously disposed of, excluding items authorized for disposition by the Contracting Officer. The Contractor may request the NAFI to remove those items or enter into an agreement for their storage. Within 15 days, the NAFI will accept title to those items and remove them or enter into a storage agreement. The Contracting Officer may verify the list upon removal of the items, or if stored, within 45 days from submission of the list, and shall correct the list, as necessary, before final settlement.
> (e) After termination, the Contractor shall submit a final termination settlement proposal to the Contracting Officer in the form and with the certification prescribed by the Contracting Officer. The Contractor shall submit the proposal promptly, but no later than 1 year from the effective date of termination, unless extended in writing by the Contracting Officer upon written request of the Contractor within this one year period. However, if the Contracting Officer determines that the facts justify it, a termination settlement proposal may be received and acted on after 1 year or any extension. If the Contractor fails to submit the proposal within the time allowed, the Contracting Officer may determine, on the basis of information available, the amount, if any, due the Contractor because of the termination and shall pay the amount determined.
> (f) Subject to paragraph (e) of this clause, the Contractor and the Contracting Officer may agree upon the whole or any part of the amount to be paid or remaining to be paid because of the termination. The amount may include a reasonable allowance for profit on work done. However, the agreed amount, whether under this paragraph (f) or paragraph (g) of

this clause, exclusive of costs shown in paragraph (g)(3) of this clause, may not exceed the total contract price as reduced by:

1. The amount of payments previously made and;
2. The contract price of work not terminated. The contract shall be modified, and the Contractor paid the agreed amount. Paragraph (g) of this clause shall not limit, restrict, or affect the amount that may be agreed upon to be paid under this paragraph.

(g) If the Contractor and the Contracting Officer fail to agree on the whole amount to be paid because of the termination of work, the Contracting Officer shall pay the Contractor the amounts determined by the Contracting Officer as follows, but without duplication of any amounts agreed on under paragraph (f) of this clause:

(h) The contract price for completed supplies or services accepted by the government (or sold or acquired under paragraph (b)(9) of this clause) not previously paid for, adjusted for any saving of freight and other charges.

c. The total of:

(1) The costs incurred in the performance of the work terminated, including initial costs and preparatory expense allocable thereto, but excluding any costs attributable to supplies or services paid or to be paid under paragraph (g)(1) of this clause;

(2) The cost of settling and paying termination settlement proposals under terminated subcontracts that are properly chargeable to the terminated portion of the contract if not included in subdivision (g)(2)(a) of this clause; and;

(3) A sum, as profit on subdivision (g)(2)(a) of this clause, determined by the Contracting Officer, in effect on the date of this contract, to be fair and reasonable; however, if it appears that the Contractor would have sustained a loss on the entire contract had it been completed, the Contracting Officer shall allow no profit under this subdivision (g)(2)(c) and shall reduce the settlement to reflect the indicated rate of loss.

(4) The reasonable costs of settlement of the work terminated, including:

(a) Accounting, legal, clerical, and other expenses reasonably necessary for the preparation of termination settlement proposals and supporting data;

(b) The termination and settlement of subcontracts (excluding the amounts of such settlements); and;

(c) Storage, transportation, and other costs incurred, reasonably necessary for the preservation, protection, or disposition of the termination inventory.

(5) Except for normal spoilage, and except to the extent that the NAFI expressly assumed the risk of loss, the Contracting Officer shall exclude from the amounts payable to the Contractor under paragraph (g) of this clause, the fair value as determined by the Contracting Officer, for the loss of the NAFI property.

(6) The cost principles and procedures, in effect on the date of this contract, shall govern all costs claimed, agreed to, or determined under this clause.

(7) Except as otherwise provided in this contract, any dispute or claim concerning this contract, which is not disposed of by agreement, shall be decided by the Contracting Officer, who shall state their decision in writing, and mail or otherwise furnish a copy of it to the Contractor. Within 90 days from date of receipt of such copy, the Contractor may appeal by mailing or otherwise furnishing to the Contracting Officer a written appeal addressed to the Immediate Superior In Command (ISIC) of the Command one level above the Contracting Officer's Command. The decision of this authority shall be final and conclusive. If no such appeal is filed, the decision of the Contracting Officer shall be final and conclusive. The Contractor shall be afforded an opportunity to be heard and to offer evidence in support of any appeal under this clause. Pending final decision on such a dispute, the Contractor shall proceed

diligently with the performance of the contract and according to the decision of the Contracting Officer, unless directed to do otherwise by the Contracting Officer.

(8) In arriving at the amount due the Contractor under this clause, there shall be deducted:

(a) All unliquidated advance or other payments to the Contractor under the terminated portion of this contract;

(b) Any claim which the NAFI has against the Contractor under this contract; and;

(c) The agreed price for, or the proceeds of sale of, materials, supplies, or other things acquired by the Contractor or sold under the provisions of this clause and not recovered by or credited to the NAFI.

(9) If the termination is partial, the Contractor may file a proposal with the Contracting Officer for an equitable adjustment of the price(s) of the continued portion of the contract. The Contracting Officer shall make any equitable adjustment agreed upon. Any proposal by the Contractor for an equitable adjustment under this clause shall be requested within 90 days from the effective date of termination unless extended in writing by the Contracting Officer.

(10) The NAFI may, under the terms and conditions it prescribes, make partial payments and payments against costs incurred by the Contractor for the terminated portion of the contract, if the Contracting Officer believes the total of these payments will not exceed the amount to which the Contractor will be entitled.

(11) If the total payments exceed the amount finally determined to be due, the Contractor shall repay the excess to the NAFI upon demand, together with interest computed at the rate established by the Secretary of the Treasury under 50 U.S.C. App. § 1215(b)(2). Interest shall be computed for the period from the date the excess payment is received by the Contractor to the date the excess is repaid. Interest shall not be charged on any excess payment due to a reduction in the Contractor's termination settlement proposal because of retention or other disposition of termination inventory until 10 days after the date of the retention or disposition, or a later date determined by the Contracting Officer because of the circumstances.

(12) Unless otherwise provided in this contract or by statute, the Contractor shall maintain all records and documents relating to the terminated portion of this contract for 3 years after final settlement. This includes all books and other evidence bearing on the Contractor's costs and expenses under this contract. The Contractor shall make these records and documents available to the NAFI, at the Contractor's office, at all reasonable times, without any direct charge. If approved by the Contracting Officer, photographs, microphotographs, or other authentic reproductions may be maintained instead of original records and documents.

(End of clause)

NARS.I071 NO-COST TERMINATION (OCT 2024)

a. The Contracting Officer, by written notice, may initiate a no-cost termination settlement when it is in the NAFI's interest.

b. A no-cost termination may be negotiated instead of issuing a termination notice when:

(1) A termination for default is not appropriate;

(2) A no-cost termination is in the NAFI's best interests;

(3) There are no outstanding payments, debts due the NAFI, paid items not yet delivered, unreturned NAFI property, or other contractor obligations;

c. A full and final settlement and release document shall be signed by the contractor, barring any future invoices, demands for payment, requests for equitable adjustment, or claims upon or arising under the contract.

(End of clause)

NARS.I076 ASSIGNMENT (NAFI 1010.2 NOV 2013)

a. No claims for monies due or to become due shall be assigned by the Contractor unless:

(1) Approved in writing by the Contracting Officer;
(2) Made in accordance with the laws and regulations of the United States of America; and;
(3) Permitted by the laws and regulations of the Contractor's country.

b. Any assignment under this contract shall cover all amounts payable under this contract and not already paid, and shall not be made to more than one party, except that any such assignment may be made to one party as agent or trustee for two or more parties participating in such financing. On each invoice or voucher submitted for payment under this contract to which any assignment applies and for which direct payment thereof is to be made to as assignee, the Contractor shall identify the assignee by name and complete address and shall acknowledge the validity of the assignment and the right of the named assignee to receive payment in the amount invoiced or vouchered.

(End of Clause)

NARS.I077 NONWAIVER OF DEFAULTS (NAFI 1021 JUN 2014)

Any failure by the NAFI at any time to enforce or require strict performance of any terms or conditions shall not constitute waiver thereof, and shall not affect or impair such terms or conditions in any way or the NAFI's right at any time to avail itself of such remedies as it may have for any breach or breaches of such terms or conditions.

(End of Clause)

NARS.I093 CLOUD COMPUTING SERVICES (JAN 2023)

a. Definitions. As used in this clause—

“Authorizing official,” as described in DoD Instruction 8510.01, Risk Management Framework (RMF) for DoD Information Technology (IT), means the senior Federal official or executive with the authority to formally assume responsibility for operating an information system at an acceptable level of risk to organizational operations (including mission, functions, image, or reputation), organizational assets, individuals, other organizations, and the Nation.

“Cloud computing” means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

“Compromise” means disclosure of information to unauthorized persons, or a violation of the security policy of a system, in which unauthorized intentional or unintentional disclosure, modification, destruction, or loss of an object, or the copying of information to unauthorized media may have occurred.

“Cyber incident” means actions taken through the use of computer networks that result in a compromise or an actual or potentially adverse effect on an information system and/or the information residing therein.

"Government data" means any information, document, media, or machine readable material regardless of physical form or characteristics, that is created or obtained by the Government in the course of official Government business.

"Government-related data" means any information, document, media, or machine readable material regardless of physical form or characteristics that is created or obtained by a contractor through the storage, processing, or communication of Government data. This does not include contractor's business records e.g. financial records, legal records etc. or data such as operating procedures, software coding or algorithms that are not uniquely applied to the Government data.

"Information system" means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

"Media" means physical devices or writing surfaces including, but not limited to, magnetic tapes, optical disks, magnetic disks, large-scale integration memory chips, and printouts onto which information is recorded, stored, or printed within an information system.

"Spillage" security incident that results in the transfer of classified or controlled unclassified information onto an information system not accredited (i.e., authorized) for the appropriate security level.

b. Cloud computing security requirements. The requirements of this clause are applicable when using cloud computing to provide information technology services in the performance of the contract.

(1) If the Contractor indicated in its offer that it "does not anticipate the use of cloud computing services in the performance of a resultant contract," in response to provision NARS.K018, Representation of Use of Cloud Computing, and after the award of this contract, the Contractor proposes to use cloud computing services in the performance of the contract, the Contractor shall obtain approval from the Contracting Officer prior to utilizing cloud computing services in performance of the contract.

(2) The Contractor shall implement and maintain administrative, technical, and physical safeguards and controls with the security level and services required in accordance with the Cloud Computing Security Requirements Guide (SRG) (version in effect at the time the solicitation is issued or as authorized by the Contracting Officer) found at https://public.cyber.mil/dccs/dccs-documents/ unless notified by the Contracting Officer that this requirement has been waived by the DoD Chief Information Officer.

(3) The Contractor shall maintain within the United States or outlying areas all Government data that is not physically located on DoD premises, unless the Contractor receives written notification from the Contracting Officer to use another location, as described in DoD Instruction 8510.01.

c. Limitations on access to, and use and disclosure of Government data and Government-related data.

(1) The Contractor shall not access, use, or disclose Government data unless specifically authorized by the terms of this contract or a task order or delivery order issued hereunder.

(i) If authorized by the terms of this contract or a task order or delivery order issued hereunder, any access to, or use or disclosure of, Government data shall only be for purposes specified in this contract or task order or delivery order.

(ii) The Contractor shall ensure that its employees are subject to all such access, use, and disclosure prohibitions and obligations.

(iii) These access, use, and disclosure prohibitions and obligations shall survive the expiration or termination of this contract.

(2) The Contractor shall use Government-related data only to manage the operational environment that supports the Government data and for no other purpose unless otherwise permitted with the prior written approval of the Contracting Officer.

d. Cloud computing services cyber incident reporting. The Contractor shall report all cyber incidents that are related to the cloud computing service provided under this contract. Reports shall be submitted to DoD via http://dibnet.dod.mil/.

e. Malicious software. The Contractor or subcontractors that discover and isolate malicious software in connection with a reported cyber incident shall submit the malicious software in accordance with instructions provided by the Contracting Officer.

f. Media preservation and protection. When a Contractor discovers a cyber incident has occurred, the Contractor shall preserve and protect images of all known affected information systems identified in the cyber incident report (see paragraph (d) of this clause) and all relevant monitoring/packet capture data for at least 90 days from the submission of the cyber incident report to allow DoD to request the media or decline interest.

g. Access to additional information or equipment necessary for forensic analysis. Upon request by DoD, the Contractor shall provide DoD with access to additional information or equipment that is necessary to conduct a forensic analysis.

h. Cyber incident damage assessment activities. If DoD elects to conduct a damage assessment, the Contracting Officer will request that the Contractor provide all of the damage assessment information gathered in accordance with paragraph (f) of this clause.

i. Records management and facility access.

(1) The Contractor shall provide the Contracting Officer all Government data and Government- related data in the format specified in the contract.

(2) The Contractor shall dispose of Government data and Government-related data in accordance with the terms of the contract and provide the confirmation of disposition to the Contracting Officer in accordance with contract closeout procedures.

(3) The Contractor shall provide the Government, or its authorized representatives, access to all Government data and Government-related data, access to contractor personnel involved in performance of the contract, and physical access to any Contractor facility with Government data, for the purpose of audits, investigations, inspections, or other similar activities, as authorized by law or regulation.

j. Notification of third party access requests. The Contractor shall notify the Contracting Officer promptly of any requests from a third party for access to Government data or Government-related data, including any warrants, seizures, or subpoenas it receives, including those from another Federal, State, or local agency.

The Contractor shall cooperate with the Contracting Officer to take all measures to protect Government data and Government-related data from any unauthorized disclosure.

k. Spillage. Upon notification by the Government of a spillage, or upon the Contractor’s discovery of a spillage, the Contractor shall cooperate with the Contracting Officer to address the spillage in compliance with agency procedures.

l. Subcontracts. The Contractor shall include this clause, including this paragraph (l), in all subcontracts that involve or may involve cloud services, including subcontracts for commercial services.

(End of clause)

NARS.I095 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

a. Definitions. As used in this clause—

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered foreign country means The People’s Republic of China.

Covered telecommunications equipment or services means–

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means–

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

b. Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

c. Exceptions. This clause does not prohibit contractors from providing—

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

d. Reporting requirement.

(1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at https://dibnet.dod.mil. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at https://dibnet.dod.mil.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause.

(i) Within one business day from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model

number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.
(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

e. Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

NARS.I096 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)

a. Definitions. As used in this clause—

Kaspersky Lab covered article means any hardware, software, or service that–

(1) Is developed or provided by a Kaspersky Lab covered entity;
(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab covered entity; or
(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab covered entity.

Kaspersky Lab covered entity means–

(1) Kaspersky Lab;
(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;
(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
(4) Any entity of which Kaspersky Lab has a majority ownership.

b. Prohibition. Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits Government use of any Kaspersky Lab covered article. The Contractor is prohibited from—

(1) Providing any Kaspersky Lab covered article that the Government will use on or after October 1, 2018; and
(2) Using any Kaspersky Lab covered article on or after October 1, 2018, in the development of data or deliverables first produced in the performance of the contract.

c. Reporting requirement.

(1) In the event the Contractor identifies a Kaspersky Lab covered article provided to the Government during contract performance, or the Contractor is notified of such by a subcontractor at any tier or any other source, the Contractor shall report, in writing, to the Contracting Officer or, in the case of the Department of Defense, to the website at https://dibnet.dod.mil. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify

both the indefinite delivery contract and any affected orders in the report provided at https://dibnet.dod.mil.

(2) The Contractor shall report the following information pursuant to paragraph (c)(1) of this clause:

(i) Within 3 business days from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; brand; model number (Original Equipment Manufacturer (OEM) number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the report pursuant to paragraph (c)(1) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of a Kaspersky Lab covered article, any reasons that led to the use or submission of the Kaspersky Lab covered article, and any additional efforts that will be incorporated to prevent future use or submission of Kaspersky Lab covered articles.

d. Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

NARS.I098 NAF COMBATING TRAFFICKING IN PERSONS (OCT 2024)

a. Definitions. As used in this clause-

“Agent” means any individual, including a director, an officer, an employee, or an independent contractor, authorized to act on behalf of the organization.

“Coercion” means-

(1) Threats of serious harm to or physical restraint against any person;

(2) Any scheme, plan, or pattern intended to cause a person to believe that failure to perform an act would result in serious harm to or physical restraint against any person; or

(3) The abuse or threatened abuse of the legal process.

“Commercial sex act” means any sex act on account of which anything of value is given to or received by any person.

“Debt bondage” means the status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt, if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined.

“Employee” means an employee of the Contractor directly engaged in the performance of work under the contract who has other than a minimal impact or involvement in contract performance.

“Forced Labor” means knowingly providing or obtaining the labor or services of a person-

(1) By threats of serious harm to, or physical restraint against, that person or another person;

(2) By means of any scheme, plan, or pattern intended to cause the person to believe that, if the person did not perform such labor or services, that person or another person would suffer serious harm or physical restraint; or

(3) By means of the abuse or threatened abuse of law or the legal process.

“Involuntary servitude” includes a condition of servitude induced by means of-

(1) Any scheme, plan, or pattern intended to cause a person to believe that, if the person did not enter into or continue in such conditions, that person or another person would suffer serious harm or physical restraint; or

(2) The abuse or threatened abuse of the legal process.

"Recruitment fees" means fees of any type, including charges, costs, assessments, or other financial obligations, that are associated with the recruiting process, regardless of the time, manner, or location of imposition or collection of the fee.

(1) Recruitment fees include, but are not limited to, the following fees (when they are associated with the recruiting process) for-

(i) Soliciting, identifying, considering, interviewing, referring, retaining, transferring, selecting, training, providing orientation to, skills testing, recommending, or placing employees or potential employees;

(ii) Advertising

(iii) Obtaining permanent or temporary labor certification, including any associated fees;

(iv) Processing applications and petitions;

(v) Acquiring visas, including any associated fees;

(vi) Acquiring photographs and identity or immigration documents, such as passports, including any associated fees;

(vii) Accessing the job opportunity, including required medical examinations and immunizations; background, reference, and security clearance checks and examinations; and additional certifications;

(viii) An employer's recruiters, agents or attorneys, or other notary or legal fees;

(ix) Language interpretation or translation, arranging for or accompanying on travel, or providing other advice to employees or potential employees;

(x) NAFI-mandated fees, such as border crossing fees, levies, or worker welfare funds;

(xi) Transportation and subsistence costs-

(A) While in transit, including, but not limited to, airfare or costs of other modes of transportation, terminal fees, and travel taxes associated with travel from the country of origin to the country of performance and the return journey upon the end of employment; and

(B) From the airport or disembarkation point to the worksite;

(xii) Security deposits, bonds, and insurance; and

(xiii) Equipment charges.

(2) A recruitment fee, as described in the introductory text of this definition, is a recruitment fee, regardless of whether the payment is-

(i) Paid in property or money;

(ii) Deducted from wages;

(iii) Paid back in wage or benefit concessions;

(iv) Paid back as a kickback, bribe, in-kind payment, free labor, tip, or tribute; or

(v) Collected by an employer or a third party, whether licensed or unlicensed, including, but not limited to-

(A) Agents;

(B) Labor brokers;

(C) Recruiters;

(D) Staffing firms (including private employment and placement firms);

(E) Subsidiaries/affiliates of the employer;

(F) Any agent or employee of such entities; and

(G) Subcontractors at all tiers.

"Severe forms of trafficking in persons" means-

(1) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or

(2) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

"Sex trafficking" means the recruitment, harboring, transportation, provision, or obtaining of a person for the purpose of a commercial sex act.

"Subcontract" means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

"Subcontractor" means any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime contractor or another subcontractor.

"United States" means the 50 States, the District of Columbia, and outlying areas.

b. The NAFI has adopted a policy prohibiting trafficking in persons including the trafficking-related activities of this clause. Contractors, contractor employees, and their agents shall not-

(1) Engage in trafficking in persons during the period of performance of the contract;

(2) Procure commercial sex acts during the period of performance of the contract;

(3) Use forced labor in the performance of the contract;

(4) Destroy, conceal, confiscate, or otherwise deny access by an employee to the employee's identity or immigration documents, such as passports or drivers' licenses, regardless of issuing authority;

(5)

(i) Use misleading or fraudulent practices during the recruitment of employees or offering of employment, such as failing to disclose, in a format and language understood by the employee or potential employee, basic information or making material misrepresentations during the recruitment of employees regarding the key terms and conditions of employment, including wages and fringe benefits, the location of work, the living conditions, housing and associated costs (if employer or agent provided or arranged), any significant costs to be charged to the employee or potential employee, and, if applicable, the hazardous nature of the work;

(ii) Use recruiters that do not comply with local labor laws of the country in which the recruiting takes place;

(6) Charge employees or potential employees recruitment fees;

(7)

(i) Fail to provide return transportation or pay for the cost of return transportation upon the end of employment-

(A) For an employee who is not a national of the country in which the work is taking place and who was brought into that country for the purpose of working on a U.S. NAFI contract or subcontract (for portions of contracts performed outside the United States); or

(B) For an employee who is not a United States national and who was brought into the United States for the purpose of working on a U.S. NAFI contract or subcontract, if the payment of such costs is required under existing temporary worker programs or pursuant to a written agreement with the employee (for portions of contracts performed inside the United States); except that-

(ii) The requirements of paragraphs (b)(7)(i) of this clause shall not apply to an employee who is-

(A) Legally permitted to remain in the country of employment and who chooses to do so; or
(B) Exempted by an authorized official of the contracting NAFI from the requirement to provide return transportation or pay for the cost of return transportation;
(iii) The requirements of paragraph (b)(7)(i) of this clause are modified for a victim of trafficking in persons who is seeking victim services or legal redress in the country of employment, or for a witness in an enforcement action related to trafficking in persons. The contractor shall provide the return transportation or pay the cost of return transportation in a way that does not obstruct the victim services, legal redress, or witness activity. For example, the contractor shall not only offer return transportation to a witness at a time when the witness is still needed to testify. This paragraph does not apply when the exemptions at paragraph (b)(7)(ii) of this clause apply.
(8) Provide or arrange housing that fails to meet the host country housing and safety standards; or
(9) If required by law or contract, fail to provide an employment contract, recruitment agreement, or other required work document in writing. Such written work document shall be in a language the employee understands. If the employee must relocate to perform the work, the work document shall be provided to the employee at least five days prior to the employee relocating. The employee's work document shall include, but is not limited to, details about work description, wages, prohibition on charging recruitment fees, work location(s), living accommodations and associated costs, time off, roundtrip transportation arrangements, grievance process, and the content of applicable laws and regulations that prohibit trafficking in persons.

c. Contractor requirements. The Contractor shall-
(1) Notify its employees and agents of-
(i) The NAFI's policy prohibiting trafficking in persons, described in paragraph (b) of this clause; and
(ii) The actions that will be taken against employees or agents for violations of this policy. Such actions for employees may include, but are not limited to, removal from the contract, reduction in benefits, or termination of employment; and
(2) Post a copy of that notification, translated into the language(s) of the workers, in an accessible central location and visible to all employees, at all production facilities that manufacture goods and merchandise.
(3) Take appropriate action, up to and including termination, against employees, agents, or subcontractors that violate the policy in paragraph (b) of this clause.

d. Notification and full cooperation.
(1) The Contractor shall inform the Contracting Officer [fill-in contact info] and the NAFI or parent organization Inspector General [fill-in contact info] immediately of-
(i) Any credible information it receives from any source (including host country law enforcement) that alleges a Contractor employee, subcontractor, subcontractor employee, or their agent has engaged in conduct that violates the policy in paragraph (b) of this clause (see also 18 U.S.C. 1351, Fraud in Foreign Labor Contracting, if that clause is included in the solicitation or contract, which requires disclosure to the NAFI or parent organization Office of the Inspector General when the Contractor has credible evidence of fraud); and
(ii) Any actions taken against a Contractor employee, subcontractor, subcontractor employee, or their agent pursuant to this clause.
(2) If the allegation may be associated with more than one contract, the Contractor shall inform all possibly-affected contracting officers.
(3) The Contractor shall, at a minimum-

(i) Disclose to the NAFI or parent organization Inspector General [fill-in contact info] information sufficient to identify the nature and extent of an offense and the individuals responsible for the conduct;
(ii) Provide timely and complete responses to NAFI auditors' and investigators' requests for documents;
(iii) Cooperate fully in providing reasonable access to its facilities and staff (both inside and outside the U.S.) to allow contracting NAFI and other responsible Federal agencies to conduct audits, investigations, or other actions to ascertain compliance with the Trafficking Victims Protection Act of 2000 (22 U.S.C. chapter 78), E.O. 13627, or any other applicable law or regulation establishing restrictions on trafficking in persons, the procurement of commercial sex acts, or the use of forced labor; and
(iv) Protect all employees suspected of being victims of or witnesses to prohibited activities, prior to returning to the country from which the employee was recruited, and shall not prevent or hinder the ability of these employees from cooperating fully with NAFI authorities.

(4) The requirement for full cooperation does not foreclose any Contractor rights arising in law or the terms of the contract. It does not-
(i) Require the Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine;
(ii) Require any officer, director, owner, employee, or agent of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; or
(iii) Restrict the Contractor from-
(A) Conducting an internal investigation; or
(B) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

e. Remedies. In addition to other remedies available to the NAFI, the Contractor’s failure to comply with the requirements of paragraphs (c), (d), or (i) of this clause may result in-
(1) Requiring the Contractor to remove a Contractor employee or employees from the performance of the contract;
(2) Requiring the Contractor to terminate a subcontract;
(3) Suspension of contract payments until the Contractor has taken appropriate remedial action;
(4) Loss of award fee, consistent with the award fee plan, for the performance period in which the NAFI determined Contractor non-compliance;
(5) Declining to exercise available options under the contract;
(6) Termination of the contract for default or cause, in accordance with the termination clause of this contract; or
(7) Suspension or debarment.

f. Mitigating and aggravating factors. When determining remedies, the Contracting Officer may consider the following:
(1) Mitigating factors. The Contractor had a Trafficking in Persons compliance plan (if required) or an awareness program (if required) at the time of the violation, was in compliance with the plan, and has taken appropriate remedial actions for the violation, that may include reparation to victims for such violations.
(2) Aggravating factors. The Contractor failed to abate an alleged violation or enforce the requirements of a compliance plan, when directed by the Contracting Officer to do so.
(3) Posting. The Contractor shall post the relevant requirements for Trafficking in Persons employee notification, no later than the initiation of contract performance, at the workplace (unless the work is to be performed in the field or not in a fixed location) and on the Contractor's Web site (if one is maintained). If posting at the workplace or on the Web site is impracticable, the Contractor shall provide

the relevant contents of compliance to each worker in writing and to the Contracting Officer upon request.

g. Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (g), in all subcontracts and in all contracts with agents.

(End of clause)

NARS.I100 PROCUREMENT INTEGRITY (NAFI 1009 NOC 2013)

a. By submission of an offer or performance of this contract, the offeror or Contractor certifies with respect to this NAFI contract action:

b. That no discussion, offer, or promise of future employment or business opportunity has nor will be made to NAFI civilian or military personnel who personally and substantially participated in the contract action.

(1) That no offer, promise, or gift of any gratuity, entertainment, money, or other thing of value has nor will be made to any NAFI civilian or military personnel or any other employee of the U.S. Government or member of their family or household.

(2) That no information proprietary to other offerors or other contracting information (offeror list, prices offered, technical evaluations, rankings, etc.) is sought or obtained until it is available to the public under NAFI procedures.

(3) That no person or selling agency has been employed or retained to secure this contract for a commission, percentage, brokerage, or contingent fee except bona fide employees or bona fide established commercial selling agencies retained by the Contractor for the purpose of securing business.

c. The Contractor certifies that no gratuities (entertainment, gifts, money, kickbacks, or other things of value) were nor will be solicited or accepted by the Contractor or Contractor representative, nor from any subcontractor or subcontractor representative, for the purpose of obtaining or rewarding favorable treatment in connection with this contract or any subcontract under it.

d. The Contractor will report in writing to the Contracting Officer any possible violation of this clause when there are reasonable grounds to believe a violation may have occurred. The Contractor will cooperate fully with any federal agency investigation of a possible violation of this clause.

e. For breach of any of these certifications, the NAFI may terminate this contract for default, and/or deduct from amounts due under this or other contracts, or charge the Contractor for the total value of any contingent fee, gratuity, kickback or other loss to the NAFI arising out of the breach.

(End of Clause)

NARS.I101 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)

a. Definitions. As used in this clause—

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement,

control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

b. Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, "No TikTok on Government Devices" Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

c. Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

CLAUSES INCORPORATED BY REFERENCE

The following clauses set forth are hereby incorporated into this order or contract by reference with the same force and effect as if they were given in full text. As used in the following clause, the term "Government" is deleted and the abbreviation "NAFI" is substituted in lieu thereof. The date of each clause shall be the current date set forth at the time of issuance of an order or contract award. Upon request, the Contracting Officer will provide the full text.

CLAUSE NO.	CLAUSE TITLE
NARS.I104	Child Labor-Cooperation with Authorities and Remedies
NARS.I116	Covenant Against Contingent Fees (Contracts over $150,000)
NARS.I117	Contractor Inspection Requirements
NARS.I026	Contract Work Hours and Safety Standards Act- Overtime. Compensation – General (Contracts over $150,000)

NARS.I030	Equal Opportunity for Workers with Disabilities (Supplies And Services Contracts $15,000)
NARS.I031	Service Contract Act of 1965, as Amended (Contracts over $2,500)
NARS.I037	Equal Opportunity for Veterans (Supplies and Service over $150,000)
NARS.I045	Restrictions on Certain Foreign Purchases
NARS.I055	Extras
NARS.I062	Changes–Fixed Price (with ALT I through IV)
NARS.I075	Convict Labor (Contracts over $2,500)
NARS.I081	Employment Reports Veterans, (Supplies and Services Contracts over $10,000)

SUPPLEMENTAL CLAUSES

NARS.I023 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of clause)

NARS.I024 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

a. The NAFI may extend the term of this contract by written notice to the Contractor within 30 days of time within which the Contracting Officer may exercise the option; provided that the NAFI gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the NAFI to an extension.

b. If the NAFI exercises this option, the extended contract will be considered to include this option clause.

c. The total duration of this contract, including the exercise of any options under this clause, will not exceed 5 years and 6 months.

(End of clause)

NARS.I041 PRIVACY ACT NOTIFICATION (JAN 2008). The Contractor will be required to design, develop, or operate a system of records on individuals, to accomplish an agency function subject to the Privacy Act of 1974, Public Law 93-579, December 31, 1974 (5 U.S.C.552a) and applicable agency regulations. Violation of the Act may involve the imposition of criminal penalties.

(End of Clause)

NARS.I042 PRIVACY ACT (APR 1984)
a. The Contractor agrees to

(1) Comply with the Privacy Act of 1974 (the Act) and the agency rules and regulations issued under the Act in the design, development, or operation of any system of records on individuals to accomplish an agency function when the contract specifically identifies

(i) The systems of records; and

(ii) The design, development, or operation work that the Contractor is to perform;

(2) Include the Privacy Act notification contained in this contract in every solicitation and resulting subcontract and in every subcontract awarded without a solicitation, when the work statement in the proposed subcontract requires the redesign, development, or operation of a system of records on individuals that is subject to the Act; and

(3) Include this clause, including this subparagraph (3), in all subcontracts awarded under this contract which requires the design, development, or operation of such a system of records.

b. In the event of violations of the Act, a civil action may be brought against the agency involved when the violation concerns the design, development, or operation of a system of records on individuals to accomplish an agency function, and criminal penalties may be imposed upon the officers or employees of the agency when the violation concerns the operation of a system of records on individuals to accomplish an agency function. For purposes of the Act, when the contract is for the operation of a system of records on individuals to accomplish an agency function, the Contractor is considered to be an employee of the agency.

(2) "Operation of a system of records," as used in this clause, means performance of any of the activities associated with maintaining the system of records, including the collection, use, and dissemination of records.

(3) "Record," as used in this clause, means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, education, financial transactions, medical history, and criminal or employment history and that contains the person's name, or the identifying number, symbol, or other identifying particular assigned to the individual, such as a fingerprint or voiceprint or a photograph.

(4) "System of records on individuals," as used in this clause, means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual.

(End of clause)

NARS.I097 PROTECTION OF PERSONALLY IDENTIFIABLE INFORMATION (PII) (OCT 2024)

a. The online program offered must adhere to Department of Defense (DoD) mandates and best practices for securing and safeguarding Personally Identifiable Information (PII). PII policies are outlined in OMB-M-06-19 and DOD instruction 8500.01 and are available from:

(1) https://georgewbush-whitehouse. archives.gov/omb/memoranda/fy2006/m06-19.pdf (OMB- M-06-19);

(2) https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodi/850001_2014. pdf?ver=2019-10-07-112048-860

b. DOD instruction 8500.01.

(1) These mandates and best practices are included in the Secretary of the Navy (SECNAV) Instruction 5211.5F and CNIC Instruction 5211.1A. SECNAV Instruction 5211.5F is available from https://www.doncio.navy.mil/ContentView.aspx, and CNIC Instruction 5211.1 is available upon request from the KO. PII training Identifying and Safeguarding Personally Identifiable Information (PII) must be completed at the following website https://public.cyber.mil/dcs/.

(2) The Online system is to include servers that must comply with DoDI 8500.01.

(3) With these responsibilities Contractors should ensure that their employees:

c. At all times, Protect DON Information from inappropriate access, use, and disclosure and implement safeguards. Obtain DON management's written approval prior to taking any DON sensitive information away from the office. The DON manager's approval must identify the business necessity for removing such information from the DON facility. PII must be accessed on government furnished equipment (GFE) and safeguards must in place to protect the PII.

(End Clause)

NARS.I112 RESERVED

(End of clause)

NARS.I113 RESERVED

(End of clause)

NARS.I114 DEPARTMENT OF LABOR WAGE DETERMINATION (OCT 2024):

A Department of Labor Wage Determination applies to the service requirement within this solicitation and is available at https://sam.gov/search/?index=sca&page=1&pageSize=25&sort=-modifiedDate&sfm%5Bstatus%5D%5Bis_active%5D=true ; select the appropriate state and county where services will be conducted in support of this requirement and follow the instructions. The appropriate wage determination will be displayed with the applicable wage rates that are required to be paid to employees working on the services provided under the contract.

(End of Clause)

NARS.I115 MINIMUM WAGES UNDER EXECUTIVE ORDER 13658 (APR 2016)

a. Definitions. As used in this clause—
“United States" means the 50 states and the District of Columbia.
“Worker"—

(1) Means any person engaged in performing work on, or in connection with, a contract covered by Executive Order 13658, and—

(i) Whose wages under such contract are governed by the Fair Labor Standards Act (29 U.S.C. chapter 8), the Service Contract Labor Standards statute (41 U.S.C. chapter 67), or the Wage Rate Requirements (Construction) statute (40 U.S.C. chapter 31, subchapter IV);

(ii) Other than individuals employed in a bona fide executive, administrative, or professional capacity, as those terms are defined in 29 CFR part 541; and

(iii) Regardless of the contractual relationship alleged to exist between the individual and the employer.

(2) Includes workers performing on, or in connection with, the contract whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c).

(3) Also includes any person working on, or in connection with, the contract and individually registered in a bona fide apprenticeship or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship.

b. Executive Order Minimum Wage rate.

(1) The Contractor shall pay to workers, while performing in the United States, and performing on, or in connection with, this contract, a minimum hourly wage rate of $10.10 per hour beginning January 1, 2015.

(5) The Contractor shall adjust the minimum wage paid, if necessary, beginning January 1, 2016, and annually thereafter, to meet the applicable annual E.O. minimum wage. The Administrator of the Department of Labor's Wage and Hour Division (the Administrator) will publish annual determinations in the Federal Register no later than 90 days before the effective date of the new E.O. minimum wage rate. The Administrator will also publish the applicable E.O. minimum wage on https://beta.SAM.gov (or any successor Web site) and a general notice on all wage determinations issued under the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, that will provide information on the E.O. minimum wage and how to obtain annual updates. The applicable published E.O. minimum wage is incorporated by reference into this contract.

(6)

(i) The Contractor may request a price adjustment only after the effective date of the new annual E.O. minimum wage determination. Prices will be adjusted only for increased labor costs (including Subcontractor labor costs) as a result of an increase in the annual E.O. minimum wage, and for associated labor costs (including those for Subcontractors). Associated labor costs shall include increases or decreases that result from changes in social security and unemployment taxes and workers' compensation insurance, but will not otherwise include any amount for general and administrative costs, overhead, or profit.

(ii) Subcontractors may be entitled to adjustments due to the new minimum wage, pursuant to paragraph (b)(2). Contractors shall consider any Subcontractor requests for such price adjustment.

(iii) The Contracting Officer will not adjust the contract price under this clause for any costs other than those identified in paragraph (b)(3)(i) of this clause, and will not provide duplicate price adjustments with any price adjustment under clauses implementing the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute.

(7) The Contractor warrants that the prices in this contract do not include allowance for any contingency to cover increased costs for which adjustment is provided under this clause.

(8) A pay period under this clause may not be longer than semi-monthly, but may be shorter to comply with any applicable law or other requirement under this contract establishing a shorter pay period. Workers shall be paid no later than one pay period following the end of the regular pay period in which such wages were earned or accrued.

(9) The Contractor shall pay, unconditionally to each worker, all wages due free and clear without subsequent rebate or kickback. The Contractor may make deductions that reduce a worker's wages below the E.O. minimum wage rate only if done in accordance with 29 CFR 10.23, Deductions.

(10) The Contractor shall not discharge any part of its minimum wage obligation under this clause by furnishing fringe benefits or, with respect to workers whose wages are governed by the Service Contract Labor Standards statute, the cash equivalent thereof.

(11) Nothing in this clause shall excuse the Contractor from compliance with any applicable Federal or State prevailing wage law or any applicable law or municipal ordinance establishing a minimum wage higher than the E.O. minimum wage. However, wage increases under such other laws or municipal ordinances are not subject to price adjustment under this subpart.

(12) The Contractor shall pay the E.O. minimum wage rate whenever it is higher than any applicable collective bargaining agreement(s) wage rate.

(13) The Contractor shall follow the policies and procedures in 29 CFR 10.24(b) and 10.28 for treatment of workers engaged in an occupation in which they customarily and regularly receive more than $30 a month in tips.

c.

(1) This clause applies to workers as defined in paragraph (a). As provided in that definition—

(i) Workers are covered regardless of the contractual relationship alleged to exist between the Contractor or Subcontractor and the worker;

(ii) Workers with disabilities whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c) are covered; and

(iii) Workers who are registered in a bona fide apprenticeship program or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship, are covered.

(2) This clause does not apply to—

(i) Fair Labor Standards Act (FLSA)-covered individuals performing in connection with contracts covered by the E.O., i.e. those individuals who perform duties necessary to the performance of the contract, but who are not directly engaged in performing the specific work called for by the contract, and who spend less than 20 percent of their hours worked in a particular workweek performing in connection with such contracts;

(ii) Individuals exempted from the minimum wage requirements of the FLSA under 29 U.S.C. 213(a) and 214(a) and (b), unless otherwise covered by the Service Contract Labor Standards statute, or the Wage Rate Requirements (Construction) statute. These individuals include but are not limited to—

(A) Learners, apprentices, or messengers whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(a).

(B) Students whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(b).

(C) Those employed in a bona fide executive, administrative, or professional capacity (29 U.S.C. 213(a)(1) and 29 CFR part 541).

d. Notice. The Contractor shall notify all workers performing work on, or in connection with, this contract of the applicable E.O. minimum wage rate under this clause. With respect to workers covered by the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, the Contractor may meet this requirement by posting, in a prominent and accessible place at the worksite, the applicable wage determination under those statutes. With respect to workers whose wages are governed by the FLSA, the Contractor shall post notice, utilizing the poster provided by the Administrator, which can be obtained at www.dol.gov/whd/govcontracts, in a prominent and accessible place at the worksite. Contractors that customarily post notices to workers electronically may post the notice electronically provided the electronic posting is displayed prominently on any Web site that is maintained by the Contractor, whether external or internal, and customarily used for notices to workers about terms and conditions of employment.

e. Payroll Records.
   1. The Contractor shall make and maintain records, for three years after completion of the work, containing the following information for each worker:
      a. Name, address, and social security number;
      b. The worker's occupation(s) or classification(s);
      c. The rate or rates of wages paid;
      d. The number of daily and weekly hours worked by each worker;
      e. Any deductions made; and
      f. Total wages paid.

2. The Contractor shall make records pursuant to paragraph (e)(1) of this clause available for inspection and transcription by authorized representatives of the Administrator. The Contractor shall also make such records available upon request of the Contracting Officer.
3. The Contractor shall make a copy of the contract available, as applicable, for inspection or transcription by authorized representatives of the Administrator.
4. Failure to comply with this paragraph (e) shall be a violation of 29 CFR 10.26 and this contract. Upon direction of the Administrator or upon the Contracting Officer's own action, payment shall be withheld until such time as the noncompliance is corrected.
5. Nothing in this clause limits or otherwise modifies the Contractor's payroll and recordkeeping obligations, if any, under the Service Contract Labor Standards statute, the Wage Rate Requirements (Construction) statute, the Fair Labor Standards Act, or any other applicable law.

f. Access. The Contractor shall permit authorized representatives of the Administrator to conduct investigations, including interviewing workers at the worksite during normal working hours.

g. Withholding. The Contracting Officer, upon his or her own action or upon written request of the Administrator, will withhold funds or cause funds to be withheld, from the Contractor under this or any other NAFI or Government contract with the same Contractor, sufficient to pay workers the full amount of wages required by this clause.

h. Disputes. Department of Labor has set forth in 29 CFR 10.51, Disputes concerning Contractor compliance, the procedures for resolving disputes concerning a Contractor's compliance with Department of Labor regulations at 29 CFR part 10. Such disputes shall be resolved in accordance with those procedures and not the Disputes clause of this contract. These disputes include disputes between the Contractor (or any of its Subcontractors) and the contracting agency, the Department of Labor, or the workers or their representatives.

i. Anti-retaliation. The Contractor shall not discharge or in any other manner discriminate against any worker because such worker has filed any complaint or instituted or caused to be instituted any proceeding under or related to compliance with the E.O. or this clause or has testified or is about to testify in any such proceeding.

j. Subcontractor compliance. The Contractor is responsible for Subcontractor compliance with the requirements of this clause and may be held liable for unpaid wages due Subcontractor workers.

k. Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (k) in all subcontracts, regardless of dollar value, that are subject to the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, and are to be performed in whole or in part in the United States.

(End of Clause)
(END OF SECTION I)

PART III, SECTION J: LIST OF ATTACHMENTS

Attachment 1- Quality Assurance Surveillance Plan
Attachment 2- Past Performance Questionnaire

(END OF SECTION J)

PART IV, SECTION K OFFEROR REPRESENTATIONS AND CERTIFICATIONS:

NARS.K018 REPRESENTATION FOR USE OF CLOUD COMPUTING (SEP 2015)
a. Definition. “Cloud computing,” as used in this provision, means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

b. The Offeror shall indicate by checking the appropriate blank in paragraph (c) of this provision whether the use of cloud computing is anticipated under the resultant contract.

c. Representation. The Offeror represents that it—

_____ Does anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

_____ Does not anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

(End of provision)

NARS.K019 CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN (OCT 2020)
a. The term "commercially available off-the-shelf (COTS) item," is defined in the clause of this solicitation entitled NARS.I098 "Combating Trafficking in Persons".

b. The apparent successful Offeror shall submit, prior to award, a certification, as specified in paragraph (c) of this provision, for the portion (if any) of the contract that-

(1) Is for supplies, other than commercially available off-the-shelf items, to be acquired outside the United States, or services to be performed outside the United States; and
(2) Has an estimated value that exceeds $550,000.

c. The certification shall state that-

(1) It has implemented a compliance plan to prevent any prohibited activities identified in paragraph (b) of the clause at NARS.I098, Combating Trafficking in Persons, and to monitor, detect, and terminate the contract with a subcontractor engaging in prohibited activities identified at paragraph (b) of the clause at NARS.I098, Combating Trafficking in Persons; and
(2) After having conducted due diligence, either-
(i) To the best of the Offeror’s knowledge and belief, neither it nor any of its proposed agents, subcontractors, or their agents is engaged in any such activities; or
(ii) If abuses relating to any of the prohibited activities identified in NARS.I098(b) have been found, the Offeror or proposed subcontractor has taken the appropriate remedial and referral actions.

(End of provision)

NARS.K022 OFFEROR REPRESENTATIONS AND CERTIFICATIONS COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through https://www.sam.gov. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (e) through (v) of this provision.

a. Definitions. As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause NARS.I095, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or
(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

(1) PSC 5510, Lumber and Related Basic Wood Materials;
(2) Product or Service Group (PSG) 87, Agricultural Supplies;
(3) PSG 88, Live Animals;
(4) PSG 89, Subsistence;
(5) PSC 9410, Crude Grades of Plant Materials;
(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
(8) PSC 9610, Ores;
(9) PSC 9620, Minerals, Natural and Synthetic; and
(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause NARS.I095, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
(3) Consist of providing goods or services to marginalized populations of Sudan;
(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
(5) Consist of providing goods or services that are used only to promote health or education; or
(6) Have been voluntarily suspended. "Sensitive technology"—

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
  (i) To restrict the free flow of unbiased information in Iran; or
  (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

b.

(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.
(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through http://www.sam.gov. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at NARS.K022, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference.

[Offeror to identify the applicable paragraphs at (e) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

c. [RESERVED]

d. [RESERVED]

e. Certification Regarding Payments to Influence Federal Transactions (31 http://uscode.house.gov/ U.S.C. 1352). (Applies only if the contract is expected to exceed $150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

f. Buy American Certificate. (Applies only if the clause at CNIC M-7043.1 NARS.I043, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see CNIC M-7043.1 NAR Part 25).

(iv) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_______________	________________	_________________________
_______________	________________	_________________________
_______________	________________	_________________________

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. ___________

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of CNIC M-7043.1 NAR Part 25.

g.

(1) Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Applies only if the clause at CNIC M-7043.1 NARS.I029, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin
______________	________________________
______________	________________________
______________	________________________

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_______________	_________________	____________________________
_______________	_________________	____________________________
_______________	_________________	____________________________
_______________		

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see CNIC M-7043.1 NAR Part 25).

Line Item No. ____________

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of CNIC M-7043.1 NAR Part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at NARS.I029 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:
(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

Line Item No.

____

[List as necessary]

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at NARS.I029 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:
(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”
(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
____________________	______________________
____________________	______________________
____________________	______________________

[List as necessary]

(4) Trade Agreements Certificate. (Applies only if the clause at NARS.I044, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
____________________	_____________________
____________________	_____________________
____________________	_____________________

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of CNIC M-7043.1 NAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

h. Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals–

(1) □ Are, □ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) □ Have, □ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) □ Are, □ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and
(4) □ Have, □ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds $10,000 for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:
(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.
(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.
(ii) Examples.
(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.
(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.
(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.
(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

i. **NARS.K028 CERTIFICATION REGARDING KNOWLEDGE OF CHILD LABOR FOR LISTED END PRODUCTS** (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) Listed end products.

Listed End Product	Listed Countries of Origin
____________________	______________________
____________________	______________________

____________________ _______________________

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.
☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

j. Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) □ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
(2) □ Outside the United States.

k. Certificates regarding exemptions from the application of the Service Contract Act (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror □ does □ does not certify that–
(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;
(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and
(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.
☐ (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror □ does □ does not certify that-
(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;
(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies–

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

l. Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) Taxpayer Identification Number (TIN).

☐ TIN: _________________________________.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other _________________________________.

(5) Common parent.

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name ________________________________.
TIN _________________________________.

m. Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

n. Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that–

(i) It □ is, □ is not an inverted domestic corporation; and

(ii) It □ is, □ is not a subsidiary of an inverted domestic corporation.

o. Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (NARS.K011); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

p. Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it □ has or □ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____________________.
Immediate owner legal name: _____________________.

(Do not use a "doing business as" name)
Is the immediate owner owned or controlled by another entity: □ Yes or □ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ___________________.
Highest-level owner legal name: ___________________.
(Do not use a "doing business as" name)

q. Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that–

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that–

(i) It is □ is not □ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is □ is not □ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

r. Predecessor of Offeror. (Applies in all solicitations that include the provision at NARS.K009, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it □ is or □ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ________________ (or mark "Unknown").
Predecessor legal name: ________________.
(Do not use a "doing business as" name).

s. [Reserved]

t. Public Disclosure of Greenhouse Gas Emissions and Reduction Goals. Applies in all solicitations that require offerors to register in SAM.

(1) This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.
(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].
(i) The Offeror (itself or through its immediate owner or highest-level owner) □ does, □ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.
(ii) The Offeror (itself or through its immediate owner or highest-level owner) □ does, □ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.
(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.
(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported:____________.

u.

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.
(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.
(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

V. **NARS.K021 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION**. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.
(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".
(2) The Offeror represents that–
(i) It □ does, □ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.
(ii) After conducting a reasonable inquiry for purposes of this representation, that

it □ does, □ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

NARS.K023 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at NARS.K021, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at NARS.K022, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at NARS.K021, or in paragraph (v)(2)(ii) of the provision at NARS.K022.

a. Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause NARS.I095, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

b. Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

c. Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

d. Representation. The Offeror represents that—

(1) It □ will, □ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—
It □ does, □ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

e. Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);
(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and
(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or
(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

(END OF SECTION K)

PART IV, SECTION L: INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

L-1. PREPARATION OF OFFERS.

(a) Offerors are expected to carefully read all specifications and instructions. The Offeror shall submit documentation explaining their approach for satisfying the requirements of this solicitation. Proposals must be clear, coherent, and prepared in sufficient detail for effective evaluation of the Offeror's proposal against the evaluation criteria. Failure to meet all of the Terms, Conditions and Specifications in Section C may render the Offeror's proposal as non-responsive to the solicitation and thereupon eliminated from competition for award.

(b) Each Offeror shall furnish the information required by the solicitation. The Offeror shall sign the offer and print or type its name on the Schedule and each continuation sheet on which it makes an entry. Erasures or other changes must be initialed by the person signing the offer. Offeror(s) shall provide with their proposal a letter providing the name(s) and title(s) of the person(s) with authority to obligate their company. Offers signed by an agent shall also be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(c) Offerors must state a definite time for delivery of supplies or services, unless otherwise specified in the solicitation.

(d) Offers for supplies or services, other than those specified, will not be considered unless an amendment to the solicitation is issued.

(e) Time, if stated as a number of days, will include Saturdays, Sundays, and holidays.

(f) Offerors shall fill out and return Section K provisions Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment and Covered Telecommunications Equipment or Services-Representation, Prohibition on Certain Procurements from the XinJiang Uyghur Autonomous Region – Certification.

(g) Offerors shall price all option year periods.

(h) To ensure applicable Wage Determination(s) be listed at contract award, Offerors shall fill out and provide the locations of their workers and return Supplemental I clause Department of Labor Wage Determination.

All correspondence in conjunction with this solicitation should be directed to the NAFI's Point of Contact (POC) identified below:

Contracting Officer: Jasmyn Payne
Phone: (901) 874-6931
E-mail: jasmyn.m.payne.naf@us.navy.mil

L-2. PROPOSAL GENERAL REQUIREMENTS.

(a) Offerors are hereby advised that the Navy CNIC reserves the right, to make award without discussions; therefore, Offerors should propose their best-offer initially. Offerors shall submit their proposals as follows:

(b) Responses to this offer shall be required in written proposal format. Responses to this RFP shall be submitted, by the closing date, in the content and format specified. Proposals in response to this RFP shall include three separate parts: one (1) Price proposal and two (2) non-price proposals. Of the two (2) non-price proposals required, one must be redacted of all company names, logos and references. The second non-price proposal can include company names/logos/references. The names of any contract employees/personnel/staff members can be included in both technical proposals. It is the responsibility of the Offerors to ensure that the evaluation factors are identified and adequately addressed in their proposal submissions: The overall proposal shall consist of three (3) physically separate and detachable parts, individually entitled:
(1)

PROPOSAL VOLUME	VOLUME CONTENTS	REQUIRED # ELECTRONIC COPIES
VOLUME I	Technical Proposal (Subsections tabbed for ease of identification)	Two (2) via Email 1. Redacted 2. Non-Redacted
VOLUME II	Price Proposal	One (1) via Email

(c) The completion and submission of the above items shall constitute an offer (proposal) and shall indicate the Offeror's unconditional assent to the terms and conditions of this RFP and any attachments hereto. Alternate proposals are not authorized. Objections to any terms and conditions of the RFP shall constitute a deficiency which may make the offer unacceptable. An Offeror may correct a deficiency only through discussions.

L-2.2. Page Limitations

(a) RESERVED

(b) For electronic proposals: each volume of the proposal shall be provided in the number of copies as shown above. The technical proposal shall not exceed 30 pages (excluding past performance, resumes, Project Management Plan (PMP), Quality Control Plan (QCP), and price proposal). Sub-factor sections shall be labeled for ease of identification. Offerors shall identify each volume identifying volume number, name, and copy number (i.e., Volume I, Technical Proposal, Copy 2 of 8); Request for Proposal Number; Date of Submission; and Offeror's Name.

L-2.3. Format

(a) RESERVED

(b) For electronic proposals: The Offeror's proposal shall be prepared on standard 8.5 x 11inch paper in portrait orientation (charts may be landscaped). All pages of each proposal shall be appropriately numbered and identified with the solicitation number and the name of the Offeror. For ease of reference each Offeror shall use a page numbering system. Consecutive page numbering is preferred (i.e., Page 4-5 identifies Tab 4, Page 5). In addition, for document control purposes, all proposal amendments provided after the initial proposal shall be submitted as page changes with each page identified by amendment number and date as well as by page number. Each page shall have a one-inch margin at the top, the bottom, and on each side. Page numbers, notations of proprietary information, and any other identifying information that can be printed on each page are excluded from the margin requirement.

(c) Print must be spaced at 6 lines per inch. Text font must be no smaller than 10 point. Text included on figures and/or matrices may be reduced to 8 point.

(d) To aid in evaluation, proposals shall be clearly and concisely written as well as being neat, indexed (cross-indexed, as appropriate) and logically assembled. Each proposal part shall begin with an executive summary. In addition to the specific requirements for each proposed part, the Offeror shall provide other narrative or supporting materials (i.e., matrix, charts, or graphics) considered necessary for the NAFI to fully understand the proposal. Price information shall be included in the price proposal only. Man-hours referenced outside the price proposal shall be quoted in hour figures only, without indication as to the cost of these hours. Skill levels shall be treated in a similar manner.

(1) For control purposes each copy of the proposal shall be numbered.

L-3. PROPOSAL SUBMISSION REQUIREMENT AND INSTRUCTIONS.

L-3.1. Volume I: Technical Proposal - The Offeror's technical proposal shall consist of narrative and supporting data that address all technical requirements contained in the solicitation. The Offeror's technical proposal must address the following elements:

(a) Factor 1: Technical Capability - Describe in detail the approach for meeting the technical requirements to include a description of your services and systems that will be used to perform the requirements in section C.

(b) Factor 2: Past Performance - The Offeror shall describe its past performance within the past 5 years directly related to the same or similar tasks and support per section C (Government or Commercial). Offeror shall request three sources provide Past Performance Questionnaires (PPQ's) directly to jasmyn.m.payne.naf@us.navy.mil.

The contract referenced above must be of similar size, scope and complexity to the current requirement herein. The Offeror shall include the previous contract number with their submitted proposal.

The Past Performance Questionnaires are not required to be submitted with the proposal if you have received a contract award from CNIC within the past five years.

L-3.2. Volume II: Price Proposal - The price proposal shall include a price for each CLIN of this solicitation and shall include a summary of each year's cost and a total estimated cost for the contract. There are no page limits set for the price proposal.

(a) Other Direct Costs: Estimate all other direct costs for performance of contract requirements; (i.e., travel, subscriptions or periodicals, consultant fees.) Rationale for each proposed other direct cost is required.

(b) Payment Methods: Electronic funds transfer payments are available for processing invoices for this contract in accordance with the prompt payment act via the Automated Clearing House (ACH) network, subject to the rules of the National Automated Clearing House Association or via credit card procedures with Single Use Account (SUA). Single-Use Account (SUA) is an electronic payment tool that eliminates the need for a physical credit card. SUA provides a single electronic card for each payment. A 16-digit virtual account is provided for each payment and the credit limit is set for the specific payment amount. Electronic funds transfer ACH payments will be processed on a Net 30-day basis or less if a payment discount is offered, e.g. 2% 10 days. SUA payments will be processed in 10 days or less. Prospective Contractors shall include their desired payment method in their proposal.

L-4. REQUEST FOR INFORMATION/QUESTIONS.

L-4.1. Questions and/or comments relative to the solicitation should be submitted via e-mail to:

Jasmyn Payne – Primary Point of Contact (POC)
NAF Contracting Officer
Phone: 901-874-9631
Email: Jasmyn.m.payne.naf@us.navy.mil

L-4.1. Technical inquiries and questions relating to proposal procedures are to be submitted via email to Contracting Officer at the email address mentioned above not later than 22 JAN 2026, 0800 CT.

Offerors are requested to review the specifications in its entirety prior to submitting a question. Oral explanations or instructions are not binding. Any information given to an Offeror which impacts the solicitation and/or offer will be given in the form of a written amendment to the solicitation. As this is a competitive negotiation acquisition, there is no public bid opening and no information will be given out prior to debriefings, pre-award or post-award.

L-5. DIRECTIONS FOR SUBMITTING PROPOSALS.

L-5.1. Electronic Offers are the preferred method. All email offers submitted must be received by the closing date and time to: Jasmyn.m.payne.naf@us.navy.mil

L-5.2. RESERVED

L-5.3. Signed amendments shall be submitted via e-mail as scanned pdf documents.

(a) Clarity and completeness of the proposal are of utmost importance. The proposal and any modifications shall be written in a practical, clear, and concise manner. It must use quantitative terms whenever possible and shall avoid qualitative adjectives to the maximum extent possible. Proposal volumes must be internally consistent or the proposal will be considered unrealistic and unacceptable.

(b) Unnecessarily elaborate proposals beyond that sufficient to present a complete and effective proposal are not desired and may be construed as an indication of the Offeror's lack of cost consciousness.

(c) In order to provide all necessary information for background experience, your proposal shall cover your understanding of the proposed work and your proposed method to attain contract objectives. Data previously submitted may not be considered; therefore, such data should not be relied upon nor incorporated. Statements the Offeror understands, can or will comply with all specifications, statements paraphrasing the specifications or parts thereof, and phrases such as "standard procedures will be employed" or well-known techniques will be used," etc., will be considered insufficient.

L-6. LATE SUBMISSIONS, MODIFICATIONS, AND WITHDRAWALS OF PROPOSALS.

(a) Any proposal received at the office designated in the solicitation after the exact time specified for receipt will not be considered unless it is received before award is made and it:

(1) was sent by registered or certified mail not later than the fifth calendar day before the date specified for receipt of offers (e.g., an offer submitted in response to a solicitation requiring receipt of offers by the 20th of the month must have been mailed by the 15th);

(2) was sent by mail or, if authorized by the solicitation, or via facsimile and it is determined by the NAFI that the late receipt was due solely to mishandling by the NAFI after receipt at the Government installation;

(3) was sent by Express Mail (e.g. FedEx, UPS or postal service), not later than 5:00 P.M. at the place of mailing two working days prior to the date specified for receipt of proposals. The term "working days" excludes weekends and U.S. Federal holidays; or

(4) is the only proposal received.

(5) Email receipts date and time are automatically system generated prior to RFP due date, and contain all necessary attachments.

(b) Any modification of a proposal, except a modification resulting from the Contracting Officer's request for "final proposal revision" offer is subject to the same conditions above.

(c) A modification resulting from the Contracting Officer's request for "final proposal revision" offer received after the time and date specified in the request will not be considered unless received before award and the late receipt is due solely to mishandling by the NAFI after receipt at the Government installation.

(d) The only acceptable evidence to establish the date of mailing of a late proposal or modification sent either by U.S. Postal Service registered or certified mail is the U.S. or Canadian Postal Service postmark both on the envelope or wrapper and on the original receipt from the U.S. or Canadian Postal Service. Both postmarks must show a legible date or the proposal, or modification shall be processed as if mailed late. "Postmark" means a printed, stamped, or otherwise placed impression (exclusive of a postage meter machine impression) that is readily identifiable without further action as having been supplied and affixed by employees of the U.S. or Canadian Postal Service on the date of mailing. Therefore, Offerors should request the postal clerk place a legible hand cancellation bull's eye postmark on both the receipt and the envelope or wrapper.

(e) The only acceptable evidence to establish the time of receipt at the Government installation is the time/date stamp of that installation on the proposal wrapper or other documentary evidence of receipt maintained by the installation.

(f) The only acceptable evidence to establish the date of mailing of a late offer, modification, or withdrawal sent by “Express Mail Service” is the date entered by the mail service receiving clerk on the "Express Mail Service" label and/or the postmark on both the envelope or wrapper and on the original receipt from the mail service provider. "Postmark" has the same meaning as defined above, excluding postmarks of the Canadian Postal Service. Therefore, Offerors should request the postal clerk to place a legible hand cancellation bull's eye postmark on both the receipt and the envelope or wrapper.

(g) Notwithstanding paragraph (a) of this provision, a late modification of an otherwise successful proposal that makes its terms more favorable to the NAFI will be considered at any time it is received and may be accepted.

(h) Proposals may be withdrawn by written notice received at any time before award. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provisions entitled "Facsimile Proposals." Proposals may be withdrawn in person by an Offeror or an authorized representative, if the representative's identity is made known and the representative signs a receipt for the proposals before award.

L-7. AMENDMENTS TO SOLICITATIONS.

(a) If this solicitation is amended, then all terms and conditions which are modified remain unchanged.

(b) Offerors shall acknowledge receipt of any amendment to this solicitation by one of the following: (1) signing and returning the amendment, (2) identifying the amendment number and date in the space provided for this purpose on the form for submitting an offer, or (3) by sending letter of acknowledgement (or facsimile, if facsimile offers are authorized in the solicitation). The NAFI must receive the acknowledgement by the time specified for receipt of offers.

L-8. RESTRICTION ON DISCLOSURE AND USE OF DATA. Offerors who include in their proposal data that they do not want disclosed to the public for any purpose or used by the NAFI except for more than evaluation purposes, shall mark the title page with the following legend: "This proposal includes data that shall not be disclosed in whole or in part - for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this Offeror as a result of, or in connection with, the submission of this data, the NAFI shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the NAFI's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets ___________ (insert numbers or other identification of sheets"; and mark each sheet of data it wishes to restrict with the following legend: "Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal or quotation."

L-9. FAILURE TO SUBMIT OFFER. Recipients of this solicitation not responding with an offer should not return this solicitation, unless it specifies otherwise. Instead, they should advise the issuing office by letter or email whether they want to receive future solicitations for similar requirements. If a recipient does not submit an offer and does not notify the issuing office that future solicitations are desired, the recipient's name may be removed from the applicable mailing list.

L-10. CONTRACT AWARD – NEGOTIATED PROCUREMENT.

(a) The NAFI will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the NAFI, cost or price and non-price factors specified elsewhere in this solicitation, considered.

(b) The NAFI may (1) reject any or all offers if such action is in the public interest, (2) accept other than the lowest offer, and (3) waive informalities and minor irregularities in offers received.

(c) The NAFI intends to evaluate proposals and award a contract without discussions with Offerors. Therefore, each initial offer should contain the Offeror's best terms from a cost or price and technical standpoint. However, the NAFI reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary.

(d) The NAFI may accept any item or group of items of an offer, unless the Offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may be submitted for quantities less than those specified. The NAFI reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the Offeror specifies otherwise in the offer.

(e) A written award or acceptance of offer mailed or otherwise furnished to the successful Offeror within the time for acceptance specified in the offer shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the NAFI may accept an offer, or part of an offer, as provided above, whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award. Negotiations conducted after receipt of an offer do not constitute a rejection or counteroffer by the NAFI.

(f) Neither financial data submitted with an offer, nor representations concerning facilities or financing, will form a part of the resulting contract. However, if the resulting contract contains a clause providing for price reduction for defective cost or pricing data, the contract price will be subject to reduction if cost or pricing data furnished is incomplete, inaccurate, or not current.

(g) The NAFI may determine that an offer is unacceptable if the prices proposed are materially unbalanced between line items or sub-line items. An offer is materially unbalanced when it is based on prices which are significantly overstated in relation to cost for other work, and if there is a reasonable doubt that the offer will result in the lowest overall cost to the NAFI, even though it may be the low evaluated offer, or it is so unbalanced as to be tantamount to allowing an advance payment.

L-11. SIGNING OF OFFERS. The Contractor shall sign the offer and print or type its name on the Solicitation, Offer, and Award form of this solicitation. Erasures or other changes must be initialed by the person signing the offer. Offers signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the Contracting Officer.

L-12. UNNECESSARILY ELABORATE PROPOSALS. Unnecessarily elaborate brochures or other presentations beyond those sufficient to present a complete and effective response to this solicitation are not desired and may be construed as an indication of the Offeror's lack of cost consciousness. Elaborate artwork, expensive paper and bindings, and expensive visual and other presentation aids are neither necessary nor desired.

L-13. RETENTION OF PROPOSALS. All proposal documents shall be the property of the NAFI and retained by the NAFI, and therefore shall not be returned to the Offerors.

L-14. ACCEPTANCE PERIOD. The Offeror agrees that its offer remains valid for a period of 60 days from the solicitation's closing date.

(END OF SECTION L)

PART IV, SECTION M: EVALUATION FACTORS FOR AWARD

M-1. EVALUATION AND AWARD FACTORS. The source selected may not be the lowest price. The contract resulting from this solicitation will be awarded to the responsible Offeror whose offer, conforming to the solicitation, is the most advantageous to the NAFI, price and non-price factors considered presenting the best overall value to the NAFI. The following non-price factors along with price will be used to evaluate offers. This will be determined by comparing differences in the value of the non-price features with differences in price to the NAFI. Factors are listed in descending order of importance. Any offer that results in a rating of unacceptable for Factor 1 will not receive any further consideration for award.

M-1.1. Order of Importance: The order of relative importance for the evaluation factors is established as follows:

(a) Factor 1 is significantly more important than Factor 2

(b) The non-price factors, when combined, are significantly more important than price.

M-1.2. Evaluation Criteria: The proposals will be evaluated on the basis of the following criteria:

(a) Factor 1 - Technical Capability: The proposal will be evaluated based on the Offeror’s approach for meeting the technical capability to include a description of your services and systems that will be used to perform the requirements in section C.

(b) Factor 2 – Past Performance: Evaluation of Past Performance will be based on one or all of the following: The submission of three past performance questionnaires showing the same or similar task and support per Section C within the past 5 years.

The contract referenced above must be of similar size, scope and complexity to the current requirement herein. The Offeror shall include the previous contract number with their submitted proposal.

The NAFI reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside of the Government. Past performance information will be utilized to determine the quality of the Contractor's past performance as it relates to the probability of success for the required effort. In the case of an Offeror without a record of past performance or for whom information on past performance is not available, the Offeror may not be evaluated favorably or unfavorably on past performance and will be given a neutral rating.

The Past Performance Questionnaires are not required to be submitted with the proposal if you have received a contract award from CNIC within the past five years.

M-2. EVALUATION AND ADJECTIVAL RATINGS & DEFINITIONS.

M-2.1. Factor 1: Technical Capability evaluations will consider the strengths, significant weaknesses, and deficiencies of the Offeror's proposal using Adjectival Ratings which are:

Technical Evaluation Adjectival Ratings & Definitions

Excellent (E)	Good (G)	Satisfactory (S)	Poor (P)	Unacceptable (U)

E (Excellent) - Proposal demonstrates thorough and detailed understanding of requirements. Technical considerations and capabilities significantly exceed performance and capability standards. Proposal offers one or more significant strengths which are not offset by weaknesses. The proposal represents a high probability of success with no apparent risk in meeting the NAFI's requirements. An excellent rating includes numerous advantageous characteristics of substance which can be expected to result in a superior completed product, and essentially no disadvantages. In addition, an excellent rating may include an aesthetically pleasing and innovative proposed design solution.

G (Good) - Proposal demonstrates clear understanding of requirements. Technical considerations and capabilities exceed performance and capability standards and include some advantageous characteristics of substance and few relatively minor disadvantages. Proposal offers one or more strengths. Strengths must outweigh any weaknesses. The proposal represents a strong probability of success with overall low degree of risk in meeting the NAFI's requirements.

S (Satisfactory) – Proposal demonstrates acceptable understanding of requirements. Technical considerations and capabilities meet performance and capability standards. Proposal offers no weaknesses, or, if there are weaknesses, these weaknesses are offset by strengths. The proposal represents a reasonable probability of success with overall moderate degree of risk in meeting the NAFI's requirements.

P (Poor) - Proposal demonstrates a limited understanding of requirements. Technical considerations and capabilities are questionable as to whether or not they meet performance and capability standards necessary for acceptable contract performance. Proposal contains weaknesses and offers no strengths, or, if there are strengths, these strengths are outweighed by weaknesses. The proposal represents a low probability of success with overall high degree of risk in meeting the NAFI's requirements. Proposal might be made satisfactory with additional information and without major revisions of the proposal.

U (Unacceptable) - Proposal demonstrates a lack of understanding of the requirements. Technical considerations and capabilities do not meet performance and capability standards necessary for acceptable contract performance. Proposal contains major errors, omissions, significant weaknesses and/or deficiencies. The degree of risk is so high that there is no reasonable likelihood of success, regardless of price. Deficiencies are so major or extensive that a major revision or complete rewrite of the proposal would be necessary.

The mere existence of a single strength does not necessarily merit an Excellent rating; though an Excellent rating may be warranted should that strength provide considerable benefit to NAFI. Conversely, a number of strengths may not merit an Excellent rating if the collective benefit is relatively minor.

M-2.2. Factor 2 Past Performance: An Offeror's past performance will be evaluated based on the quality of the Offeror's recent and relevant past performance efforts, business relationship, timeliness of performance and customer satisfaction. Documented results from Past Performance Questionnaires, interviews, CPARS, and other sources form the support and basis for this assessment.

The Offeror's strengths, weaknesses, deficiencies, and uncertainties relative to how well the Offeror performed will be assessed using the information provided and gathered. No separate rating will be given for the quality of work, business relationship, timeliness of performance, or customer satisfaction; rather, the quality of the Offeror's past performance will be evaluated and incorporated into the confidence assessment as stated below.

A Past Performance evaluation of Performance Confidence assesses the probability an Offeror will meet contract requirements should that Offeror be awarded a contract. The Rating results from the merging of assessment information on (a) quality of work, (b) business relationships, (c) timeliness of performance, and (d) customer satisfaction.

Past Performance will be determined to be relevant if the performance involves work that is the same or similar in nature, size, and complexity to the services being procured under this Solicitation.

The Source Selection Authority may also research, examine, consider, and include in the evaluation of past performance, any reliable reviews, reports, tests, or evaluations by independent laboratories or consumer groups, as well as market-wide surveys that assess customer satisfaction with the products, or similar items, being submitted by the Offeror.

Past Performance Evaluation Levels are:

ADJECTIVAL	DEFINITION
Excellent	Offeror's performance was very current and very relevant to the requirements requested. Relevant defined as performing the same services. Performance was accomplished with no problems for which any required corrective actions taken were highly effective.
Good	Offeror's performance was current and relevant to the requirements requested. Relevant defined as performing similar services. Performance was accomplished with no or some minor problems for which any required corrective actions taken were effective.

Satisfactory	Offeror's performance met contractual requirements. Performance was accomplished with some minor problems for which any required corrective actions taken were satisfactory.
Unknown/Neutral	No relevant past performance record is identifiable upon which to base a meaningful past performance risk prediction. A search was unable to identify any relevant past performance information for the Contractor or their Key Personnel. This is neither a positive or negative assessment,
Marginal	Offeror's performance did not meet all of the contractual requirements. Performance was accomplished with serious problems for which any required corrective actions were marginally effective or not fully implemented.
Unsatisfactory	Offeror's performance did not meet most of the contractual requirements. Performance was accomplished with serious problems for which any required corrective actions were ineffective or non-existent.

M-3. PRICE PROPOSAL.

(a) The price proposal shall be evaluated against the following:

(1) Total Estimated Proposal: The total estimated proposal is the sum of the prices for all CLINs in the base year and all option year periods.

(2) Initial Price Evaluation: The objective of the price proposal evaluation is to ensure that the price is fair and reasonable. To achieve the objective of a fair and reasonable price, the below price analysis is deemed the only necessary evaluation.

(3) Price Analysis: In accordance with CNIC M-7043.1, the proposed prices will be examined and evaluated without evaluating its separate cost elements and proposed profit. Techniques include, but are not limited to the following:

(i) Comparison of proposed prices received in response to the solicitation.

(ii) Comparison of previously proposed prices and contract prices with current proposed prices for the same or similar services, if both the validity of the comparison and the reasonableness of the previous price(s) can be established.

(iii) Comparison of proposed prices with Independent Government Cost Estimate.

M-4. CLARIFICATIONS. Communications with an Offeror for clarifications may be necessary and are for the sole purpose of eliminating minor irregularities, informalities, or apparent clerical mistakes in the proposal. Clarification does not give the Offeror an opportunity to revise or modify its proposal.

M-5. EVALUATION OF OPTIONS. The NAFI will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the NAFI to exercise the option(s).

M-6. CONTRACT AWARD. The contract resulting from this solicitation will be awarded to the responsible Offeror whose offer conforms to the solicitation, and is the most advantageous to the NAFI, price and non-price factors considered.

(END OF SECTION M)

Attachment 1

Quality Assurance Surveillance Plan (QASP)

Military Community & Family Policy

Department of Defense

SECO IT Support (MySECO, MSEP, MyCAA, VEMIS, CCI, PECS)

INTRODUCTION

The role of the government in quality assurance is to ensure contract standards are achieved. The purpose of the QASP is to identify the methods and procedures the government will use to evaluate contractor actions while performing the requirements in the Performance Work Statement (PWS). It is designed to provide an effective surveillance method by monitoring contractor performance for each listed performance objective in the Performance Requirements Summary.

The QASP provides a systematic method to evaluate the services the contractor is required to furnish. It is essential that the government directs and oversees the maintenance of quality standards for the government to ensure superior services are provided.

The QASP has been developed by the Office of the Deputy Assistant Secretary of Defense for Military Community and Family Policy (DASD (MC&FP)) on behalf of Military Family Readiness Policy. It is designed to provide direction to personnel performing contract surveillance activities. Personnel surveying the contract terms and conditions and PWS requirements will periodically review the QASP throughout the life of the contract.

ROLES AND RESPONSIBILITIES

Contractor. The contractor is responsible for the tasks outlined in the PWS and quoted in its response to the solicitation. The contractor is responsible for implementing services is such a way as to meet the standards outlined in the QASP.

1. Within 30 days of contract award, submits a Final Quality Control Plan (QCP) including detailed technical and management procedures proposed to meet each quality standard in the QASP.

2. Provides the government access to records, procedures, documents, personnel, and systems involved in contract performance.

3. Recommends improvements to the QASP and PWS throughout the life of the contract, subject to government approval.

QUALITY REQUIREMENTS

Quality Control Plan. The contractor, not the government, is responsible for management and quality control actions to meet the terms of the contract.

The quality control plan is the driver for quality. The contractor is required to develop a comprehensive program of inspections and monitoring actions. The first major step to ensuring a "self-correcting" contract is to ensure that the quality control plan, approved at the beginning of the contract, provides the measures needed to lead the contractor to success.

Once the quality control plan is accepted, careful application of the process and standards presented in the remainder of this document will ensure a quality assurance surveillance program.

SURVEILLANCE

The government surveillance team (consisting of the Contracting Officer (CO), Contracting Officer's Representative (COR), Government Program Manager or Designated Functional Representative) reserves the right to perform random surveillance spot checks.

At a minimum, the surveillance will include:

1. Periodic surveillance: The government will monitor performance of certain performance requirements on a weekly, monthly, or quarterly basis. These items are indicated in the Performance Requirement Summary below.

2. Contractor reports: The contractor shall report statistics on all metrics listed in the Performance Requirement Summary, as required by the PWS.

3. Unannounced inspections: The government reserves the right to conduct unscheduled checks on any performance requirement at any time.

4. 100% inspection: Once annually, the government will conduct a 100% review of all performance requirements.

Methods. This QASP will incorporate the following approaches to quality assurance surveillance:

1. Contractor reporting: The contractor will report on all QASP metrics quarterly and on an ad-hoc basis as required by the government.

2. Re-performance is the preferred method of correcting any unacceptable performance.

Validated Customer Complaint. If the government receives a customer complaint, the following procedures shall be followed:

1. Person receiving complaint notifies the COR.

2. COR conducts preliminary review of incident. If appropriate, the COR notifies the CO and the Government Program Manager or Designated Functional Representative.

3. The COR conducts an investigation to determine the validity of the complaint. If the COR determines the complaint to be valid, he/she documents the findings and notifies the CO, Government Program Manager or Designated Functional Representative, and the contractor.

4. The COR retains the annotated copy of the written complaint for the government's files. If the complaint is valid, the contractor is given 24 hours or a mutually agreed upon time period to correct the defect.

5. The COR informs the customer the approximate time by which the defect will be corrected and advises the customer to contact the COR if the defect is not corrected. The COR will consider the customer complaint resolved unless notified otherwise by the customer.

6. The contractor returns the written customer complaint document to the COR, completed with the actions taken to correct the defect. The government will retain this document to ensure the contractor has taken appropriate action(s) to prevent the recurrence of defects. The COR will retain and file the complaint form.

7. At the end of each month, any validated complaints will be counted to determine if performance is satisfactory or unsatisfactory based on the criteria in the Performance Requirements Summary.

Unacceptable Performance. If the number of complaints/defects exceeds the performance standard for any objective, the COR will determine the possible cause of this unacceptable performance. Government-caused complaints/defects will not be counted against the contractor. The same applies to any other requirement of the contract when Government-caused complaints/defects are the cause of unacceptable contractor performance. The COR will report to the CO on the cause of contractor defects.

If the contractor's performance is judged unacceptable by the COR, the COR will request a contractor representative's signature and date of surveillance on documentation acknowledging notification. If the contractor representative refuses to sign, the COR shall annotate on the documentation the date and time of notification and name of representative and his/her refusal to acknowledge. If the contractor disputes the results of surveillance, the COR must refer the contractor to the CO for resolution.

REVISIONS

Revisions to this QASP are the joint responsibility of the government program office, the COR, and the Contracting Officer. Surveillance checklists may be revised by the COR based on revisions of the QASP. The Contracting Officer must approve any QASP revisions in writing before changes are implemented.

DOCUMENTATION REQUIREMENTS

The COR is responsible for maintaining a surveillance folder at a designated location. The following information should be contained in the surveillance folder:

1. QASP
2. Contractor's Quality Control Plan
3. Activity Log. A chronological log of the actions taken in the accomplishment of quality assurance
4. Copy of the Awarded Contract. Applicable portions of the contract, PWS and all awarded modifications, or delivery orders
5. Appointment Letters and all Training Certificates of the COR
6. COR Surveillance Checklists
7. Quality Assurance Surveillance Schedule
8. Corrective Action Request Log
9. Corrective Action Requests
10. Copies of Contractor Status Reports
11. Minutes/Memo's/Miscellaneous Correspondence

QUALITY ASSURANCE SURVEILLANCE PLAN (QASP)

This QASP identifies critical success factors for the contract. It identifies both the performance objectives for those factors and the performance standard required for each performance objective. The government reserves the right to monitor all services called for in the contract to determine whether or not the performance objectives and goals were met.

The absence of any contract requirement from the QASP shall not detract from its enforceability nor limit the rights or remedies of the government under any other provision of the contract.

Remediation. Performance of a service will be evaluated to determine whether it meets the prescribed metric. Re-performance is the preferred method of correcting any unacceptable performance. The contractor shall provide the government a written response explaining why the performance metric was not met, how performance will be returned to acceptable levels, and what process will be implemented to prevent future occurrences. However, should the contractor perform negligibly and incur costs to the government, the contractor is required to reasonably reduce the costs from the invoice within performance month when the incident occurred.

Quality Assurance Surveillance Plan

PWS Reference #	Performance Requirement	Standard	Surveillance
6.4	Hosting and Portal Operations	100% acceptable (i.e., no complaints or defects during reporting period). Prompt pay disbursement to participating employers of spouse fellows in accordance with industry standards, government instructions, user guides and business processes developed for training content and applications. Corrections to compliance issues to be made immediately unless it is agreed upon by the COR and the contractor that additional time is needed.	Review of services and associated invoices by designated government POC upon delivery or completion of services. Review of user feedback reports. Unannounced spot checking by COR, Program Manager or Designated Functional Representative of plans, services.
6.8	Help Desk Support Compliance	95% acceptable (i.e., no more than 2 complaints or 2 defects during reporting period). Provide services in accordance with industry standards, government instructions, as approved by the government via recommended evaluation parameters and measures submitted with Program Management Plan/Quality Assurance Plan. Corrections to compliance issues to be made within 4 business days unless it is agreed upon by the COR and the contractor that additional time is needed.	Review of services and associated products by designated government POC upon delivery or completion of services. Review of user feedback reports. Unannounced spot checking by COR, Program Manager or Designated Functional Representative of plans, services.
5.2.5	Accurate Submission of Monthly Status Reports	95% acceptable (i.e., no more than 2 complaints or 2	Review of services and associated products by designated government POC upon delivery or completion

PWS Reference #	Performance Requirement	Standard	Surveillance
		defects during reporting period). Submit reports in accordance with Section 5.2.5. Corrections to compliance issues to be made within 4 business days unless it is agreed upon by the COR and the contractor that additional time is needed.	of services. Review of user feedback reports. Unannounced spot checking by COR, Program Manager or Designated Functional Representative of plans, services.
6.5	Accurate Submission of Quarterly Analytics Report	95% acceptable (i.e., no more than 2 complaints or 2 defects during reporting period). Submit reports in accordance with Section 6.5. Corrections to compliance issues to be made within 20 business days after the end of each quarter unless it is agreed upon by the COR and the contractor that additional time is needed.	Review of services and associated products by designated government POC upon delivery or completion of services. Review of user feedback reports. Unannounced spot checking by COR, Program Manager or Designated Functional Representative of plans, services.

Attachment 2

Contract Performance Customer Questionnaire

1. Please complete this questionnaire. Handwritten responses are sufficient. If you need more space than that provided, please attach additional pages or write on the back. Responses will be treated as source selection sensitive information and will be sent directly to the Contract Specialist. This information is not to be released to the offeror. Completed questionnaires may be emailed to:

CNIC Millington, ATTN: Jasmyn Payne, Contracting Officer

5720 Integrity Drive, Bldg 457

Millington, TN 38055

Phone: (901) 874-6931 | Email: jasmyn.payne@navy.mil

2. Please complete:

Company/Contractor ***Requesting*** Reference	
Company/Contractor Name	
Point of Contact Name	
Phone #	
E-mail address	
Fax Number	

Agency/Company Name ***Providing*** Reference	
Agency/Company Name	
Point of Contact Name	
POC E-mail / Phone #	
Period of Performance	
Supply/Service Provided	

PAST PERFORMANCE RATING GUIDELINES

Summarize Contractor Performance in each of the rating areas. Assign each area a rating of Unsatisfactory, Poor, Fair, Good, or Excellent. Use the following instructions as guidance in making these evaluations. Note: There is no corresponding guidance for “Customer Satisfaction”. Please use the comments area on the preceding form to justify the rating given “Customer Satisfaction.”

N/A - NOT APPLICABLE - Unable to provide a score. Performance in this area not applicable to effort assessed.

Ratings	**Quality of Service**	**Timeliness of Delivery**	**Overall Customer Satisfaction**
	-Compliance w/contract requirements -Technical excellence -Within budget -Relationship of negotiated costs to actual	-Met interim milestones -Reliable -Delivery Schedule achieved	-Effective Mgmt -Businesslike correspondence -Responsive to contract reqmnts -Prompt notification of problems -Reasonable/cooperative -Flexible -Pro-active

Unsatisfactory	Nonconformances are comprising the achievement of contract reqmnts	Delays are compromising achievement of contract reqmts	Response is not effective
Poor	Nonconformances require major agency resources to ensure achievement of contract reqmnts	Delays require major agency resources to ensure achievement of contract reqmnts	Response is marginally effective
Fair	Nonconformances require minor agency resources to ensure achievement of contract reqmnts	Delays require minor agency resources to ensure achievement of contract reqmnts	Response is somewhat effective
Good	Nonconformances do not impact achievement of contract reqmnts	Delays do not impact achievement of contract reqmnts	Response is usually effective
Excellent	There are no quality problems	There are no delays	Response is effective

PAST PERFORMANCE QUESTIONNAIRE	
1. Company/Contractor Being Referenced:	2. Solicitation/Contract Number:
3. Address:	4. Contract Type: ☒ Firm Fixed Price ☐ Cost Reimbursement ☐ Other (Please Specify)
5. Agency/Company Completing Reference:	6. Agency/Company POC, Phone, & Fax:
7. Period of Performance:	8. Overall Contract Value: $
9. Title of Contract:	
10. Description of Contract Service:	
11. Complexity of Work: Difficult: ☐ Routine: ☐	

NOTE: Please use adjectival ratings from attached sheet.

12. Evaluation Factor	**13. Rating**	**13. Comments** (Attach additional sheets, if necessary.)

a. Quality of Service		
b. Timeliness of Delivery		
c. Overall Customer Satisfaction		

15. Would you select this company/contractor again? Please explain. (Attach additional sheet if necessary.)	
16. Name, Signature, & Date:	17. Title: